Cong Yao
2595GA, The Hague, The Netherlands
31 62 656 9613
alfieyaocong@gmail.com

7 June 2022

Admission Committee
The Research Group on Law, Science, Technology & Society
Vrije Universiteit Brussel
Brussel, Belgium.

To whom it may concern,

I am writing to apply for the PhD position focusing on EU Data Protection Law in The Research Group on Law, Science, Technology & Society at your university.

With an intrinsic passion for studying law, I started my study for Juris Master's in 2016 after obtaining my Bachelor's diploma in Chemical Engineering and Technology in China. While focusing on learning intellectual property laws, I participated in a national research project on personal data protection. I interpreted and analysed the EU's General Data Protection Regulation in that project and conducted comparative research with the developing Chinese Data Protection Law. I realised although digital technologies have the power to make people's daily life convenient, it has vulnerability when facing the question of data protection and privacy for users' end. Consequently, I formulated postgraduate thesis work centred on the legal protection of biometric data.

To further probe into technology law, I enrolled in an Advanced Master's Studies in Law and Digital Technologies at Leiden University in 2020. The program equipped me with knowledge of different digital technology laws and developed my comprehensive perspective on it. I was enthralled by the human right centric design of the EU's Internet Governance Rules, which stimulated my quest to explore it further; therefore, following my passion I formulated my thesis work concerning online content regulation. In this way, I gained a comprehensive understanding of the EU's law, data protection law, and a series of regulatory rules for information and communication technologies. More importantly, I am motivated to immerse myself in lifetime research in technology law.

I believe that the PhD position in your research unit will be a life-changing experience to achieve the career I aspire for. Your research fields, such as data protection, privacy, and ethical issues of technologies, are aligned with my core interests. I am genuinely committed to investigating pragmatic ways to maximise the use of health data while safeguarding the fundamental rights of individuals. On the contrary, the newly published Data Protection Law in China in 2021 has deeply encouraged me. I am enthusiastic about gaining holistic insights into the EU's data protection and data governance rules; and afterwards, I would like to contribute to China's data protection law. In short, the PhD program would empower me to pursue a career as a tech-legal researcher and policy advisor in national and international data protection organisations.

I am confident that I can flourish as one of the promising candidates for this PhD position. My academic experience and interdisciplinary background illustrate my compatibility with this program. To summarise, I acquired knowledge of the EU's data protection law, sensitive data protection law, and internet governance rules. Additionally, my research study in intellectual property, IoT, and interpersonal communication skills make me a competent team player. I can communicate with technical specialists as well. With prior knowledge, work and research experience in mainland China, my understanding of data protection, data governance, and bioethics in the Chinese context will benefit the project. I assure you that I would be a valuable addition to the project.

Thank you for considering my application. I look forward to beginning my next academic journey at your university.

Sincerely yours,

Cong Yao

Cong Yao (He/Him/His)

Tel: + 31 62 656 9613 **E-mail:** alfieyaocong@gmail.com

Address: 2595GA, The Hague, The Netherlands

>>>*Educational Background* <<<

Leiden University, Leiden, The Netherlands **09/2020 - 08/2021**

- Program: Master of Laws in Advanced Studies in Law and Digital Technologies; GPA: 7.375/10
- Related courses: Regulating Digital Technologies, Internet Privacy and EU Data Protection, Internet Governance, Fundamental Rights and Digital Technologies, Ethics and Digital Technologies
- Master thesis: *Internet Intermediaries' Liability for Counterterrorism in the EU: A Trend from Liability to Responsibility and the Protection of Human Rights;* Grade: 8.0/10
- Supervisor: Dr Els Kindt

Xiangtan University, Xiangtan, China **09/2016 - 06/2019**

- Program: Juris Master in Intellectual Property Law; GPA:86.75/100; 3.28/4.0
- Related Courses: Copyright Law, Trademark Law and Anti-unfair Competition Law, Patent Law, Patent Document Writing, International Protection of Intellectual Property
- Master thesis: *Security Risks and Legal Protection of Biometric Data*
- Supervisor: Prof. Dongmei Xiao

Central South University, Changsha, China **09/2012 - 06/2016**

- Program: Bachelor of Engineering in Chemical Engineering and Technology; GPA: 80.00/100
- Related courses: Inorganic Chemistry, Organic Chemistry, Biochemistry, Principle of Chemical Engineering
- Bachelor thesis: *Preparation and Properties of Multiphase Cermet for Electrochemical Carbon Fixation*
- Supervisor: Dr Jiangrong Kong

>>>*Research Experience*<<<

The Study on the Legal Protection System of Digital Academic Resource Security in a Cloud Environment

Supervisor: Prof. Dongmei Xiao, 09/2016 - 06/2019

- A key project of the National Social Science Fund, No. 14A2D076, in progress
- The project focused on interpreting and analyzing the EU General Data Protection Regulation (GDPR). It also included comparative research on the right to personal information in Chinese common law and Chinese data protection policy
- Mainly responsible for translation and comparative analysis of related articles
- Participated and presented in a series of conferences, topics including sensitive data protection, right to be forgotten, data protection impact assessment, and transfers of personal data to third countries and international organizations
- Completed my postgraduate thesis, *Security Risks and Legal Protection of Biometric Data,* based on the project

>>>*Publication*<<<

Cong Y, The Compensation of the Intellectual Property Infringement in the View of Market Value, CHI ZI, ISSN: 1671-6035, Issue 485, 03/2019

>>>*Conferences*<<<

Campus Talks

- *Security Risks and Legal Protection of Biometric Data*, Faculty of Law at Xiangtan University, Xiangtan, China, 25 May 2019
- *Biometric Identification: Enhanced Security, or Less Privacy?* Faculty of Law at Xiangtan University, Xiangtan, China, 6 Jan 2019
- *Evolution of Data Controller Obligations under the EU Data Protection Rules*, Faculty of Law at Xiangtan University, Xiangtan, China, 17 Dec 2016

Conferences Participation

- Computers, Privacy and Data Protection (CPDP) Conference 2021, 14th International Conference, "Enforcing Rights in a Changing World," Online Conference, Brussels, Belgium, Jan 27 - 29, 2021
- Brave New World 2020, Art& Science Conference on How Future Technology Will Impact Human Life, Online Conference, Leiden, The Netherlands, Nov 9 - 10, 2020
- 2017 IPR Nanhu Forum: International Conference on "New Developing Idea and the Rule of Law Modernization of Intellectual Property Rights," Shanghai, China, Apr 15 - 16, 2017

>>>*Internship Experience*<<<

Chenghe Zhiyuan Intellectual Property Service Co, Ltd., Changsha, China **01/07/2019 - 31/10/2019**

- Responsible for patent application and high-tech enterprise certificate
- Communicated with clients for patent objects and drafted the application documents
- Enhanced my skills of communication with industries, understanding of technologies, and patent document writing

ZhongDing Intellectual Property Agency, Shenzhen, China **01/07/2017 - 31/08/2017**

- Served as an intern assistant in the Department of Legal Affairs, supported consultation concerning intellectual property infringement and ownership, dealt with international disputes
- Strengthened my knowledge regarding intellectual property litigation, including patent right infringement recognition, patent invalidity, and trademark infringement

>>>*Volunteer Experience*<<<

PFLAG China, Changsha, China **06/2019 - 12/2019**

- Served as a volunteer to provide counselling services for LGBTQ+ people and their families, including sexual orientation identification, coming out, and HIV/AIDS prevention
- Organized weekly lectures related to the LGBTQ+ community, including sexual safety, mental health, LGBTQ+ rights, and story sharing. Aimed to promote the awareness of LGBTQ+ rights in Changsha, China
- Assisted in hosting the 2019 Annual Meeting of PFLAG Changsha, responsible for the social media campaigning, photographing, and interviewing

>>>*Personal Skills*<<<

- **Language Proficiency:** Mandarin (Native), English (TOFEL 100, R26 L26 S22 W26)
- **Professional Qualification:** Legal Professional Qualification Certificate in the People's Republic of China

>>>*Extracurricular Activities*<<<

Postgraduate Debate Team of Xiangtan University **09/2016 - 06/2018**

- Served as a core member of the team, participated in a series of contests and won prizes
- Notably participated in the Beijing Wanhuida English Mock Court Trial on Intellectual Property Rights from April to May 2017, took charge of drafting documents concerning Brand Parallel Import, and won the Group Bronze Prize
- Greatly improved debating, critical thinking, communication, and teamwork capabilities

The Association of Speech and Eloquence of Central South University **09/2013 - 06/2014**

- Served as the leader to recruit new members, gave regular training, organized campus debate contests and served as the judge
- Responsible for the operation of the association's social media accounts, including daily news updating and campaigning
- The association members exceeded 500 people during the period, and the association was awarded as The Most Popular Club at Central South University

>>>*Honors and Awards*<<<

- 2017 & 2018 & 2019 First-class Annual Scholarship for Merit Student at Xiangtan University
- 2017 The Group Bronze Prize of the Beijing Wanhuida English Mock Court Trial Contest
- 2017 Merit Student Leader at Xiangtan University
- 2017 Excellent Social Service Provider at Xiangtan University
- 2017 The Third Place in the 22nd Debate Contest at Xiangtan University
- 2014 Merit Student Leader of School of Chemistry and Chemical Engineering at Central South University
- 2014 Top 10 Debaters in the Third Debate Contest at Central South University
- 2013 Third-class Annual Scholarship for Merit Student at Central South University
- 2013 The Third Place in the Second Debate Contest at Central South University
- 2013 The Distinguished Individual in Summer Social Practical Activity at Central South University

>>>*References*<<<

Mark Leiser

- Assistant Professor at the Center for Law and Digital Technologies at Leiden University
- Name: Dr. M. R. Leiser
- Work address: Kamerlingh Onnes Building, Steenschuur 25, 2311 ES Leiden, Room number B1.16
- Tel: + 31 71 527 8154
- E-mail: m.r.leiser@law.leidenuniv.nl

Els Kindt

- Postdoctoral Researcher at the Centre for IT and IP Law (CITIP) of KU Leuven, Associate Professor at the Centre for Law and Digital Technologies at Leiden University
- Work address: Centre for IT & IP Law, Sint-Michielsstraat 6 - box 3443, 3000 Leuven, Belgium
- Name: Dr. E.J. Kindt
- Tel: + 32 16 32 54 21
- E-mail: els.kindt@kuleuven.be

1. Topic

Electronic Health in the Digital Era: The Lawful Process of Health Data under the GDPR

2. Introduction

Big data and data-driven technologies have been playing a disruptive role in health care in recent years, helping to detect and diagnose diseases, record medical treatment, and improve the efficiency of medical service. Although these technologies have enhanced the effectiveness and efficiency of health care, their legal and ethical issues are also apparent. Data concerning health is sensitive, indicating data subjects' health conditions and private life. Besides, the accuracy, fairness, and transparency issues of data-driven technologies would also lead to medical inequality and even discrimination. Furthermore, during the COVID-19 pandemic, the process and sharing of health data to control the pandemic spread arose the fear that public sectors were trying to monitor people's daily lives in the name of public interest. Although the General Data Protection Regulation (GDPR) stresses the high sensitivity of health data and specific regulatory rules for the health data process, detailed and practical rules are needed to maximise health data use while guaranteeing the fundamental rights of data subjects. This research seeks to explore applicable health data protection rules for the coordination and cooperation between stakeholders, including policymakers, industries, civil society organisations, and data subjects. It aims to underpin the lawful process of health data under the GDPR and the protection of data subjects' fundamental rights in the digital context.

3. Research Questions and Method Design

Research Question: What Data Protection Framework Could Underpin Lawful Process of Health Data while Guaranteeing Fundamental Rights of Data Subjects?		
Sub-question	Elaboration	Method
(RQ1) What is the definition of the lawfulness processing of health data according to GDPR?	This RQ will conduct doctrinal research on GDPR, including the definition of health data, the lawfulness processing of personal data, and specific regulatory rules of health data. Besides related articles in GDPR (mainly Articles 6, 9, 35, and 37), this part will analyse other legal documents regarding health data process, including directives, policy, and industrial rules.	Doctrinal research
(RQ2) What are the legal and ethical issues regarding health data process in the digital context?	This RQ will research the application of health data and health-data-driven technologies, including their possible application scenarios and the sensitivity of health data. Based on the sensitivity of health data, this part will explore potential legal and ethical issues regarding health data process. Those issues will focus on but are not limited to data privacy, health inequalities, discrimination, and freedoms of individuals.	Literature review
(RQ3) What are the current challenges of health data protection during the implementation of GDPR？	This RQ will conclude the current challenges of health data process during the implementation of GDPR. E.g., The design of data-driven technologies to ensure the accuracy, fairness, and transparency of the system; The detailed guidance for data controllers and data processors to comply with the regulatory rules; Concrete rules for public sectors to collect, process, and share health data for public interests while guaranteeing the realisation of data subjects' human rights.	Case study and literature review
(RQ4) What efforts are needed to maximize the process of health data while guaranteeing fundamental rights of data subjects?	This RQ aims to construct actionable recommendations for policy changes for the use of health data, the protection of fundamental rights of data subjects, and the trust built between data subjects, data controllers, and data processors.	Literature review

A thesis submitted in fulfillment of the requirements of the Master of Laws: Advanced Studies Program in Law and Digital Technology degree, Leiden Law School.

Internet Intermediaries' Liability for Counterterrorism in the EU: A Trend from Liability to Responsibility and the Protection of Human Rights

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[18929 words]

Author:
Cong Yao
S2862506

Supervisor:
Dr E.J. Kindt
Second Reader:

LEIDEN UNIVERSITY

Leiden, the Netherlands
July 2021

Date: July 12th, 2021

Location: Leiden, the Netherlands

Declaration Statement

I further hereby certify that this is an original work, that this thesis does not contain any materials from other sources unless these sources have been clearly identified in footnotes, and any and all quotations have been properly marked as such and full attribution made to the author('s) thereof.

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Name Typed: Cong Yao

Student ID Number: s2862506

Signature:

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Executive Summary

Counterterrorism has always been an important topic in the EU. The E-Commerce Directive (ECD) offers a general legal framework for illegal content removal at the EU level. The ECD introduces the Notice and take-down (NTD) mechanism as an immunity approach for internet intermediaries. However, the ECD does not harmonize the conditions for holding intermediaries liable but only for exempting Internet intermediaries from liability. With the staggering rate of terrorist content generated online, there is a need to transform the horizontal NTD mechanism into a more flexible Notice and action (NA) mechanism for terrorist content regulation in the EU.

The thesis discusses the EU approach of intermediary liability to regulate terrorist content online. The key research question of the thesis is "To What Extent Shall EU Internet Intermediaries Apply Proactive Measures for Counterterrorism without Affecting Human Rights Protection?" To answer this question, this thesis examines:

1) Current challenges for counterterrorism in the EU in the digital context.
2) Existing EU rules of intermediary liability for counterterrorism in the EU.
3) Whether existing EU rules are sufficient to regulate terrorist content online with the protection of human rights.

Three legal instruments are examined in this thesis, including the Communication on Illegal Content in 2017, the Illegal Content Recommendation in 2018, and the Terrorist Content Regulation in 2021. In recent years, there has been a trend that internet intermediary liability in the EU is shifting from liability (a negligence-based approach) to responsibility (emphasizing the need for proactive measures). Following the transition toward a vertical approach to intermediary liability, these legal instruments have proposed several "voluntary measures" to form new legal obligations for internet intermediaries. Though these measures could provide a more effective way to detect and remove terrorist content, without detailed guidelines and robust safeguards, the human rights issues behind them are apparent, mainly freedom of expression, freedom of information, and freedom of business. Hence, the Member States and internet intermediaries need to constitute a fair balance of human rights when applying the new proactive approaches.

The thesis finds that Internet intermediaries could apply proactive measures for counterterrorism online. Such measures should be balanced and proportionate to protect the fundamental rights of human beings. In light of the balanced approach, several principles should be highlighted, including the prohibition of general monitoring, the cooperation with judicial-independent competent authorities, and the adoption of robust safeguards. If done so, the regulation will limit the interference with the human rights of the end-users while enabling internet intermediaries to detect and remove terrorist content effectively. Hence, it can guarantee cybersecurity and the smooth functioning of the digital single market in the EU.

Main Findings

While the E-Commerce Directive (ECD) provides the general legal framework for illegal content removal at the EU level, it does not harmonize the conditions for holding intermediaries liable but only for exempting internet intermediaries from liability. With the development of the Internet and the immense amount of terrorist content generated online, the Notice and Take-down (NTD) mechanism cannot regulate terrorist content effectively. Hence, to guarantee the safety of cyberspace, there is a need to rethink the ECD and transform the horizontal NTD mechanism into a more flexible Notice and Action (NA) mechanism in the EU.

The European Commission proposed a series of specific measures concerning intermediary liability and the moderation of terrorist content online. In recent years, there has been a trend that internet intermediary liability in the EU is shifting from liability (a negligence-based approach) to responsibility (emphasizing the need for proactive measures). However, some proactive measures applied by internet intermediaries would lead to infringement of fundamental rights, mainly:

1) The application of proactive measures to prevent the re-appearance of terrorist content would lead to general monitoring by internet intermediaries, which harms end-user's freedom of expression and the freedom of information. It also brings heavy burdens to platforms, harming their freedom of business.
2) The application of automatic measures to detect and remove terrorist content would result in over-removal of legitimate content, which constitutes an infringement of end-user's freedom of expression.
3) Non-judicial independent competent authorities in the EU Member States could issue removal orders to all service providers in the EU. It could lead to excessive, arbitrary interference with fundamental rights, including the freedom of expression, religion, assembly, and association online. It could also constitute threats to the rule of law in the Member States, undermining the mutual trust between them.
4) The short-timeline removal order to internet intermediaries could bring heavy burdens to internet intermediaries. It could also push platforms to apply automatic filters to detect and remove terrorist content swiftly, harming users' freedom of expression and information.
5) Platforms are allowed to apply specific measures to prevent the dissemination of terrorist content. The lack of coherent guidelines for specific measures and no prohibition of content filters could lead to the risk of over-removal.

Hence, further guidelines are necessary to enforce the regulation to prevent the dissemination of terrorist content online while guaranteeing the protection of human rights in the EU.

Internet Intermediaries' Liability for Counterterrorism in the EU: A Trend from Liability to Responsibility and the Protection of Human Rights

1. Introduction

This chapter provides background information on terrorist activities taking advantage of the Internet, describes challenges raised by it, and formulates the research questions and sub-questions. Besides, this chapter also introduces the research objective, methodology used for the research, and the thesis structure.

1.1. Setting the Stage

The relationship between terrorists and the media is not a new topic.[1] Knowing that they have limited capability to constitute significant damage to the states, terrorists often turn to generate fears to cause the government's over-reaction.[2] As Walter Laqueur said in 1976, "the media are terrorist's best friends…the terrorist's act by itself is nothing, publicity is all."[3] Hence, media plays an essential role in terrorist activities. In recent years, the Internet significantly enhanced the exchange of information and provided more effective communications for people. According to the Digital report 2021, currently, there are 4.66 billion active internet users worldwide, which is 59.5 per cent of the world's total population. Besides, there are now 4.20 billion social media users worldwide, equating to 53 per cent of the world's total population, and it is still developing at rapid speeds.[4]

Simultaneously, the Internet also provided an ideal tool for terrorists to spread fear and threats to the global world. In recent years, the Internet has dominated terrorists' attention over traditional media and has become the 'official media' for terrorism.[5] Being sophisticated users of these disruptive technologies, terrorists act as active roles online for various activities, including propaganda, audience development, fundraising, and data mining.[6] For example, as early adopters of information technology, right-wing extremists took advantage of many online platforms to disseminate their ideology, design campaigns, and spread terrorist content onto mainstream platforms.[7] Another example is the Christchurch mosques shooting in New Zealand on 15 March 2019, where an Australian gunman killed 51 people after sending a manifesto to politicians and live streaming part of his terrorist attack on Facebook. The live stream was viewed over 4,000 times before being removed, and its copies were disseminated through the Internet.[8] The attack highlighted the global concern with terrorism, indicating an urgent need to eliminate

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[1] *P. Wilkinson, The media and terrorism: a reassessment, Terrorism and Political Violence, 9(2), at 51(1997).*

[2] *L. Scaife, Social Networks as the New Frontier of Terrorism: # Terror. Taylor & Francis, at 2 (2017).*

[3] *W. Laqueur, The futility of terrorism, Harper's, 252(1510), at 104 (1976).*

[4] *S. Kemp, Digital 2021: Global Overview Report, 27 January 2021, available at https://datareportal.com/reports/digital-2021-global-overview-report, last visited on 12 April 2021.*

[5] *M. R. T, Soriano, Terrorism and the mass media after Al Qaeda: A change of course? Athena Intelligence Journal, 3(1), at 15 (2008).*

[6] United Nations Office on Drugs and Crime (UNODC), The use of the Internet for terrorist purposes, at 3-12, (2012), available at https://www.unodc.org/documents/frontpage/Use_of_Internet_for_Terrorist_Purposes.pdf.

[7] *European Union Agency for Law Enforcement Cooperation (Europol), "European Union Terrorism Situation and Trend report 2020" (TE-SAT), 23 June 2020, at 24, available at https://www.europol.europa.eu/activities-services/main-reports/european-union-terrorism-situation-and-trend-report-te-sat-2020, last visited on 12 April 2021.*

[8] *Christchurch shootings: 49 dead in New Zealand mosque attacks, BBC News, 15 March 2019, available at*

terrorist and violent extremist content online to ensure collective security worldwide.

Following the expansion of Web 2.0, a vast number of harmful contents were generated and disseminated by terrorist groups. Internet intermediaries functioned as go-betweens for the transmission of these contents. These intermediaries include host providers, search engines, social media, photo and video sharing websites, etc.[9] As online content continues to be generated at a staggering rate, Internet intermediaries who offer and facilitate access to them have considerable influence in shaping the information disseminated. [10] These platforms develop new power from their mastery of digital technologies in the digital era, benefiting from the global reach of the Internet and the wealth of data about their users. Internet intermediaries gradually have substantial power to regulate content online. Hence, in recent years, some states have been calling for strict regulation of intermediary liability,[11] requesting them to take proactive measures such as monitoring and tracking.[12]

There is a worldwide discussion on the role that Internet intermediaries shall play in addressing present problems related to Internet communications, including their liability for copyrights[13], hate speech[14], and counterterrorism.[15] These arguments often turn on the moral responsibilities of the internet service companies, the nature of the functions that they perform, their relationship with users, and the impact that they exert on their users. Internet intermediaries' liability has often been considered for two main reasons. First, their technical contribution is essential. Without access and host providers, there would be no Internet.[16] Second, Internet intermediaries stand in a better place to apply approaches to control illegal content online either by intervening during illegal or harmful activities or taking preventive measures.[17]

Besides, it must be emphasized that Internet intermediaries are not independent of their users, but they derive financial profits from them directly or indirectly. While storing a vast amount of information, Internet intermediaries are best equipped to supervise and protect their users from illegal content that they host. The legal relationship between Internet intermediaries and their users is not an equitable financial transaction but presents a weak side of the end-user.[18] Hence, an appropriate "duty of care"

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https://www.bbc.com/news/world-asia-47578798, last visited on 20 January 2021.

[9] *OECD, The Economic and Social Role of Internet Intermediaries, at 9, 2010, available at https://www.oecd.org/sti/ieconomy/44949023.pdf, last visited on 20 January 2021.*

[10] Ibid.

[11] *A. Toor, France and the UK consider fining social media companies over terrorist content, The Verge, 13 June 2017, available at https://www.theverge.com/2017/6/13/15790034/france-uk-social-media-fine-terrorismmay-macron, last visited on 20 January 2021.*

[12] *G. Frosio, The Death of 'No Monitoring Obligations': A Story of Untameable Monsters, at 1 (2017). See also S. Gibbs, Facebook and YouTube face tough new laws on extremist and explicit video, The Guardian, 24 May 2017, available at https://www.theguardian.com/technology/2017/may/24/facebook-youtube-tough-new-laws-extremist-explicit-video-europe, last visited on 20 January 2021.*

[13] *J. De Beer & C. D. Clemmer Global trends in online copyright enforcement: a non-neutral role for network intermediaries. Jurimetrics, 49, at 375. (2008).*

[14] *D. K. Citron & H. Norton, Intermediaries and hate speech: Fostering digital citizenship for our information age. BUL Rev., 91, at 1435. (2011).*

[15] *R. Cohen-Almagor, The role of internet intermediaries in tackling terrorism online. Fordham L. Rev., 86, at 425. (2017).*

[16] *G. N. Yannopoulos, The Immunity of Internet Intermediaries Reconsidered? In the Responsibilities of Online Service Providers. Springer, Cham, at 44 (2017).*

[17] Ibid.

[18] *S. Stalla-Bourdillon, Internet Intermediaries as Responsible Actors? Why It Is Time To Rethink the E-Commerce*

could be required by Internet intermediaries.

In the beginning, these debates were particularly prevalent in intellectual property, especially when the rightsholders turned to the intermediaries to call for assistance or action to reduce access to infringing materials. According to the speech of music manager Paul McGuinness in 2008, the industry's financial position should 'shame' service providers into starting to take "responsibility for the content they have profited from."[19] Nearly a decade later, as terrorist groups have become sophisticated users of internet platforms to organize terrorist activities online, similar arguments are found in the Home Secretary's speech to the Conservative Party conference in 2017, which called on Internet service providers to "honour their moral obligations" by devising and implementing technological solutions to remove terrorist material.[20] According to the Home Affairs Select Committee:

"The major social media companies are big, rich, and clever enough to sort this problem out - as that had proved they could do when they were protecting copyrights. It is shameful that they have failed to use the same ingenuity to protect public safety and abide by the law when they protect their own income."[21]

As online content continues to be generated rapidly, the control of its flow faces significant challenges. Considering the amount, transnational character of illegal content that has been generated online, tech companies running these online platforms are better positioned to regulate their functioning. At the same time, State powers in this respect may be more limited because of the lack of technical and human resources.[22] Internet Intermediaries could apply a series of practical measures such as software and automatic tools to curtain specific types of content, including terrorist content online. Such ability could extend to the control of information flow over the Internet, to define the terms of access unilaterally, to limit access, to block or facilitate uses, to impose commercial, political, or cultural terms and conditions for managing data, and to warrant the security and the integrity of data.[23]

Hence, in recent years some policymakers called for cooperation between the States and Internet intermediaries for counterterrorism.[24] Some states are calling for strict regulation of the liability of Internet intermediaries,[25] requesting them to apply proactive measures such as monitoring and tracking.[26] However, under the EU E-Commerce Directive (ECD),[27] Internet intermediaries do not have

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Directive as Well. In the Responsibilities of Online Service Providers. Springer, Cham, at 275 (2017).

[19] *P. McGuinness, Speech at MIDEM Cannes, 28 January 2008, reprinted in Sunday Times ,16 March 2008.*

[20] *A. Rudd, speech at the Conservative party conference, 3 October 2017,* available at https://www.bbc.co.uk/programmes/b09b2g0m. *Last visited 24 January 2021.*

[21] *Home Affairs Select Committee, Hate Crime: Abuse, Hate and Extremism Online (HC 2016–17, 69) at 13,* available at https://publications.parliament.uk/pa/cm201617/cmselect/cmhaff/609/609.pdf.

[22] *K. Huszti-Orban, Internet intermediaries and counter-terrorism: Between self-regulation and outsourcing law enforcement, 10th International Conference on Cyber Conflict (CyCon), at 242 (2018).*

[23] *J. van Hoboken & J. P. Quintais & J. Poort & N. van Eijk, Hosting Intermediary Services and Illegal Content Online: An analysis of the scope of article 14 ECD in light of developments in the online service landscape, at 12 (2018).*

[24] *K. McCann, Facebook "must pay to police internet" or face fines: UK Parliament, The Canberra Times, 30 April 2017, available at https://www.smh.com.au/technology/facebook-must-pay-to-police-internet-20170501-gvvz2e.html, last visited on 24 January 2021.*

[25] *See Toor, supra* note 11.

[26] *S. Gibbs, Facebook and YouTube face tough new laws on extremist and explicit video, The Guardian, 24 May 2017, available at https://www.theguardian.com/technology/2017/may/24/facebook-youtube-tough-new-laws-extremist-explicit-video-europe, last visited on 24 January 2021;*

[27] European Parliament & Council of the European Union, Directive 2000/31/EC of 8 June 2000 on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market [2000] OJ L178/1

liabilities as long as they meet the "Notice and Take-down" (NTD) obligation, which is also known as the 'safe harbour.'[28] Under the EU Law, it is not permitted to impose an obligation for general monitoring or actively seek facts indicating illegal activity.[29]

The ECD sets the horizontal regulation for all illegal content online in the EU. Whether sanctions are treated as civil, administrative, or criminal, the safe harbour approach is offered to Internet Intermediaries without discrimination and without examining the cause of liability. However, the ECD does not harmonize the conditions for holding intermediaries liable but only for exempting Internet intermediaries from liability. An alternative proposal is to move from the horizontal approach of the EU's safe harbour regime towards a more vertical approach with a Notice and Action system (NA), aiming to achieve a balance between conflicting fundamental rights in cases of intermediary liability. Recently, there has been a trend that intermediary liability in the EU is transmitting from liability (a negligence-based approach) toward responsibility (a proactive measure-based approach).

1.2. Research Objectives

The thesis aims to explore the possible liabilities of Internet intermediaries for effective counterterrorism in the digital context. Besides, it aims to find suitable means for Internet intermediaries to undertake their new tasks in line with the protection of human rights.

1.3. Research Questions

To What Extent Shall EU Internet Intermediaries Apply Proactive Measures for Counterterrorism without Affecting Human Rights Protection?

The following sub-questions will be analyzed:

1) What are the challenges for counterterrorism in the digital context?
2) What is the liability of "Notice and Take-down (NTD)" and "Notice and Action (NA)" for internet intermediaries in current EU legal frameworks?
3) Is the liability of "Notice and Take-down (NTD)" for Internet intermediaries enough for counterterrorism in the EU in the digital era?
4) What are the risks of interferences with human rights for the liability of "Notice and Action (NA)" for internet intermediaries for counterterrorism?
5) How to constitute a fair balance between the application of "Notice and Action (NA)" liability for internet intermediaries and the protection of human rights?

1.4. Methodology

The methodology of the thesis will be reform-orientated research. To respond to the research question, the first part will be part of the problem discussion. This part will discuss current challenges for counterterrorism in the EU in the digital context. Then the next part will analyze the existing rules in the EU for counterterrorism. A concise overview of the general issues will be provided, namely, what is the liability of the NTD in the EU legal framework? What is the liability of the NA? Besides, a list of proactive measures taken by Internet intermediaries will be studied by researching legal transformation in the EU. After that, the next section will justify the change for proactive measures by internet intermediaries. This

(E-Commerce Directive, ECD).

[28] *See* the ECD, *supra* note 27, art. 14.

[29] *See* the ECD, *supra* note 27, art. 15.

part will discuss the limitation of current rules and the feasibility of proactive measures for counterterrorism. Also, this part will research the application of proactive measures and the safeguard of human rights. Finally, a conclusion will be drawn based on the analysis of the balanced rights study. Some proposals and suggestions will be proposed to improve the EU legislation on Internet intermediaries' liability for counterterrorism.

Content has primarily been sourced from public sources on the Internet. For example, existing or proposed legislative documents were sourced from the issuing bodies' websites, such as the EUR-lex website for the EU legislation. When selecting scholarly research articles and books for the thesis, the focus has been given on the research on terrorist activities online, internet intermediaries' liability for illegal content online, measures taken by internet intermediaries for counterterrorism, as well as possible interference with fundamental rights for counterterrorism online. For example, when sourcing content from online academic and media repositories such as SSRN by Elsevier database, a variety of used search strings included "terrorist activities online," "internet intermediaries and counterterrorism," "online platforms and terrorism," "Notice and Take-down and counterterrorism." Moreover, when selecting new articles, priority has been given to the most related and recent publications and articles with more reliable authors and media sources, such as The Guardian and the Canberra Times.

1.5. Structure

The first chapter is the introduction, including the background, the research object, the research question, the methodology to conduct the research, and the structure of the thesis.

The second chapter explains the challenges for counterterrorism in the EU in the digital context. The chapter first discussed the Internet as an ideal tool for activities by terrorist organizations and then introduced major types of use of the Internet by terrorists. The chapter also analyzed the enhanced power of private companies arising from their mastery of digital technologies. Considering the economic, technological, and political power that they have, online platforms gradually stand in a better place to regulate terrorist content online. Hence, the public sector is calling for cooperation with private companies for counterterrorism. There is a need to rethink the NTD mechanism provided by the EDC.

The third chapter explores the development of EU legislation of intermediary liability for counterterrorism, including the Communication on Illegal Content in 2017, the Recommendation on Illegal Content in 2018, and the Terrorist Content Regulation in 2021. Following the transition toward a vertical approach to intermediary liability, the European Commission has proposed several "voluntary measures" to form new legal obligations for internet intermediaries. These "voluntary measures" include developing new technology and tools to improve the automatic detection and removal of terrorist content, applying technical measures for faster removal, and proactive measures to prevent the re-appearance of terrorist content.

The fourth chapter analyses the remaining human rights issue of the Terrorist Content Regulation, resulting from the competent authorities, one-hour timeline removal orders, and the specific measures applied by hosting service providers. The chapter also recommends a series of measures to constitute a balance between intermediaries and the protection of human rights.

The thesis then concludes the analysis in the previous chapters to answer the main research question - *To What Extent Shall EU Internet Intermediaries Apply Proactive Measures for Counterterrorism without Affecting Human Rights Protection?*

2. Challenges for Counterterrorism in the EU in the Digital Context

At present, Internet Communication Technologies (ICT) significantly enhanced the exchange of information and provided more effective communications for people. At the same time, terrorist groups

also take advantage of the Internet for terrorist activities.[30] This chapter explains the challenges of counterterrorism in the EU in the digital context. Therefore, it answers the sub-question (1). The first section of chapter 2 introduces the main threats of online terrorist activities. The second section analyses the increasing power of private sectors and difficulties for states with counterterrorism as they lack specific sources. The third section explains current rules related to intermediary liability for counterterrorism and proposes rethinking outdated rules and developing new measures to meet current challenges. Therefore, it answers the sub-question (2) and (3).

2.1. Terrorism's Love Affair with the Internet

2.1.1. The Internet as a new media for terrorism

The relationship between terrorism and media has long been researched.[31] By its very nature, terrorism is a more psychological weapon that communicates a threat to a wilder society.[32] Terrorists know that they have limited capability to constitute significant damage to the military machine of the states. Hence, instead of launching a war, they turned to generating fears to counterbalance their lack of strength, causing the over-reaction of the governments. The success of terrorist activities is not measured by the number of people killed but by the amount of attention the act receives and the level of outrage or joyous reaction from the audience, depending on the loyalties, religion, and political persuasions.[33] Just as the Israeli historian Yuval Noah Harari wrote: "People turn to terrorism because they know they cannot wage (conventional) war, so they opt instead to produce a theatre spectacle. Terrorists do not think like army generals; they think like theatre producers."[34] The media coverage provides a perfect platform for terrorists to spread fear and threats to the global world. In the word of Paul Wilkinson: *"when one says 'terrorism' in a democratic society, one also says 'media'."*[35]

The development of communication technology changed the audience's behaviour in the past decades. In recent years, the Internet has dominated people's attention over traditional outlets, including radios, TV news, and has become the 'official media' for terrorism.[36] Besides, with the global reach of the Internet, new and emerging media has provided easier ways for terrorists to disseminate their messages to the world. The Internet serves as an increasingly rapid and cheap communication and propaganda tool for terrorists.

By its very nature, the Internet is an ideal tool for terrorist activities.[37] First, the Internet has a global reach and easy access, which means that terrorists can access users worldwide to promote fears, threats, and values. Second, the Internet is boundless and has little censorship or other forms of government control. There are no physical barriers in cyberspace, such as checkpoints to navigate, no borders to cross, and no customs agents to outsmart.[38] Under such circumstances, the regulation on

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[30] *M. Conway, Terrorism and the Internet: New media—New threat?, Parliamentary Affairs, 59(2), at 283 (2006).*

[31] See *Wilkinson, supra note 1.*

[32] Ibid.

[33] See *Scaife, supra note 2.*

[34] Ibid.

[35] *G. Weimann, The Psychology of Mass-Mediated Terrorism. American Behavioral Scientist, AMER BEHAV SCI. 52.at 69 (2008*).

[36] *J. Baran, Terrorism and the Mass Media after Al Qaeda: A Change of Course?, The Peace and Conflict Review, at 3(2008).*

[37] *G. Weimann, www. terror. net: how modern terrorism uses the Internet, United States Institute of Peace Vol. 31, at 3 (2004).*

[38] *G. Weimann, Cyberterrorism: The sum of all fears?, Studies in Conflict & Terrorism*, *28*(2), at 129 (2005).

the Internet will experience problems with the exercise of jurisdiction,[39] which gives terrorists the chance to escape from the regulation by States. Furthermore, the anonymity of the Internet enables users to express themselves and discover their identities and interests without the scrutiny of the authorities.[40] Terrorists can utilize anonymous usernames and post to websites, social media platforms, and chat applications to attract different target audiences. Terrorists use online nicknames or log on to a website as an unidentified "guest user," making it very hard for security agencies and police forces to track down their real identities. Besides, the Internet enables interactive communications between users. Platform participations act as both information receivers and communicators, which significantly expands the number of information transmitters in the communication market.[41] Essentially, many online platforms provide a further layer of indoctrination potential to terrorist groups as they allow them to release messages directly to their intended audiences and converse with their audiences in real-time. Just as Weimann said:

"There are good reasons for terrorists to use social media. First, these channels are the most popular with their intended audience, allowing terrorists to be part of the mainstream. Second, social media channels are accessible, reliable, and user-friendly. Finally, social networking enables terrorists to reach out to their target audiences and virtually 'knock their doors' - in contrast to older models of websites in which terrorists had to wait for visitors to come to them." [42]

2.1.2. Major types of use of the Internet for terrorist activities

The Internet has revolutionized terrorism significantly. It offered a vast audience and ease of use and exploited the vast resources to strengthen terrorists' power and global influence. Being the sophisticated users of digital technologies, terrorists can simultaneously act as photographers, publicists, fundraisers, data processors, and fighters online.[43] Currently, Terrorists have long used the Internet for a variety of terrorist activities.

2.1.2.1. Propaganda

One of the key ways that the Internet has transformed terrorism has been its effect on terrorist propaganda. Modern terrorist organizations produce various propaganda in the form of images, videos, and audio files. Before the advent of the Internet, terrorist groups manually distributed these materials, either in printed materials, radio, DVDs, or television. These traditional media have a multistage process

[39] The issue of the exercise of jurisdiction includes three different types. The first type is prescriptive jurisdiction, which is the power to create, amened and repeal legislation, that is, legislative power. The second type is enforcement jurisdiction, which is the power to enforce legislation using coercive resources and powers against citizens, that is, executive powers. The problem of enforcement jurisdiction could be solved by mutual legal assistance, but requests for mutual legal assistant are often expensive and time-consuming. Besides, law enforcement authorities are not always competent enough to figure out the terrorists' location and where certain data is captured and stored, which make the law even harder to enforce. The third type is adjudication, which is the power to hear cases and make binding resolutions. The issue of jurisdiction occurs when States think differently about the need to regulate certain behaviors and the punishment behaviors, which is also known as competing sovereignty.

[40] *B. Saunders & J. Kitzinger & C. Kitzinger, Participant anonymity in the internet age: from theory to practice, Qualitative research in psychology, 12(2), at 125 (2015).*

[41] *G. Weimann, New terrorism and new media (Vol. 2), Washington, DC: Commons Lab of the Woodrow Wilson International Center for Scholars, at 2 (2014).*

[42] Ibid.

[43] *A. V. Lieberman, Terrorism, the internet, and propaganda: A deadly combination. Journal of National Security Law and Policy 9, at 95 (2017).*

of editorial selection that terrorists often cannot reach. [44] The Internet enables terrorists to avoid such thresholds and have direct control over the content of their messages. In this way, they can manipulate their image and the image of their enemies and shape how different target audiences perceive them. Many terrorists have become sophisticated users to disseminate ideas through multiple modalities, including websites, blogs, social networking websites, forums, and pictures or video-sharing services.

Terrorist groups are active and sophisticated users of some leading online platforms, such as Facebook, Twitter, and YouTube. Many terrorist groups have set up their Facebook presence and called for the "Facebook Invasion"[45] after realizing the interactive nature of Facebook. They use Facebook as a gateway to extremist sites and other online radical content by linking Facebook group pages and discussion forums. Besides, Facebook is a vast database that provides a wealth of information for targeting purposes. The platform could be used to share operational and tactical information, such as bomb recipes, weapon use and maintenance, and tactical shooting.[46] Twitter is also one of the terrorists' favourite Internet services for propaganda dissemination and internal communication. Twitter is a super-immediate and interactive platform. Users can get news from all over the world at any time and follow its dynamics in real-time, which is perfect for momentary, occasional terrorist accounts to attract attention from their audiences and amplify the influence of threats and fears.[47] YouTube is a gigantic video-sharing service platform owned by Google. In recent years, YouTube has become a powerful platform for terrorist groups and supporters to communicate, share propaganda, and recruit new members because of its massive global audience.[48] This interactive platform enables terrorist groups to exchange comments about videos and send private messages to other users, which helps them identify each other rapidly, resulting in a vibrant virtual terrorist community.[49]

2.1.2.2. Audience development

As discussed previously, terrorists act like 'theatre producers.' They need audiences to spread the threat,

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[44] *See* OECD*, supra* note 9.

[45] The “Facebook Invasion” was introduced in a jihadi online forum which states that: “Facebook is a great idea, and better than the forums. Instead of waiting for people to [come to you so you can] inform them, you go to them and teach them…With the press of a button you can send them a standardized message to thousands of persons.” It encouraged forum participants to register Facebook accounts and distribute Islamic jihadi media to optimize the Facebook usage. See *Department of Homeland Security*, *Terrorist use of social networking sites Facebook case study, 5 December 2010, available at https://publicintelligence.net/ufouoles-dhs-terrorist-use-of-social-networking-facebook-case-study/, last visited on 15 April 2021.*

[46] *L. Freeman, R. Schroeder & S. F. Everton, Social media exploitation by covert networks: A case study of ISIS. Communications of the Association for Information Systems, 41(1), at 5. (2017).*

[47] For example, in September 2013, the militant group Al-Shabaab gave a live commentary on its actions on Twitter when they attack on Westgate Mall in Nairobi, Kenya. During the attack, an account belonging to the Somali-based, al-Qaeda–related group tweeted its rationale for the attack and gave operational details of the assault—all in real time. The tweets were the first confirmation that the attack was the work of Al-Shabaab, and journalists around the world quickly reported it. This attack, which killed 72, was the first time that a group which had mounted a terrorist operation used Twitter to claim responsibility for it.

[48] *J. Klausen & E. T. Barbieri & A. Reichlin-Melnick & A. Y. Zelin, The YouTube Jihadists: A social network analysis of Al-Muhajiroun’s propaganda campaign, Perspectives on Terrorism, 6(1), at 36 (2012).*

[49] For example, a jihadist website published posts to suggest a "YouTube Invasion" to support jihadist media and al-Fajr-affiliated forums. The website suggested applying YouTube as a perfect alternative to television to reach massive and global audiences. It even instructed jihadists how to comply with YouTube's video length requirements and cut mujahedeen videos into chunks and upload them to the site in order. The jihadists noted the success of the YouTube Invasion in 2008, stating that the YouTube Invasion is a continuous and successive activity that does not have a time frame or will be over after a while. They called their group members to study YouTube in a detailed manner because it will be a permeant tool and one of the pillars of jihadist media.

fear, and their value to enhance their influence globally. The type of audience varies depending on different purposes. There are three types of audiences that terrorists target online, including terrorist supporters, the international public, and the governments.[50]

The first type is current and potential supporters of terrorism. Terrorist organizations often target their local supporters with websites in the local language. The website will provide various information about terrorist organizations, including their internal politics and values. Also, these websites make heavy use of slogans and offer items for sale, including flags and badges aimed at sympathizers.

The second type of audience is the international public, who are not directly involved in the conflict but may be interested in the issues involved. Many sites offer versions in several languages to provide information for global internet users. These sites will present basic information about the organization and extensive historical background materials. This information sometimes is valuable for international reporters. For example, Twitter has become one of the terrorists' favourite Internet services to disseminate propaganda and enable internal communication. Terrorists found that news reports often sacrifice a comprehensive investigation and in-depth analysis of the incident to some extent to guarantee its immediacy. When there are few options for mainstream media for a news report, they may take tweets as a legitimate news resource. Under such circumstances, terrorists take advantage of this trend and methodically exploit this shortcoming for propaganda purposes to spread fears and panic by posting fake "breaking news."

States and governments are also being regarded as audiences of terrorist organizations. Some sites try to demoralize the enemy by threatening attacks and fostering guilt about the enemy's conduct and motives.

2.1.2.3. Fundraising

Money is the lifeblood of terrorist organizations, regardless of specific beliefs.[51] Internet platforms serve as powerful tools for fundraising for many groups because of their nature of immediacy and interaction. Like many political organizations, terrorist groups also use the Internet to raise funds to purchase daily supplies,[52] weapons[53] and organize activities.

Terrorist groups are experienced fundraisers who apply several recommended ways[54] when calling for fundraising online. First, terrorist groups have exploited the Internet, especially social media platforms, to identify their target audiences. They use various forms of materials such as websites, pictures, and videos to engage with potential audiences to help their audience to understand the groups and their activities so that they are more willing to participate. Second, they also provide real-time updates for audiences and interact with them, taking advantage of the widespread access and anonymity of the Internet to raise funds from sympathetic individuals globally.[55] Simultaneously, the opportunity to raise

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[50] *B. Fishman, Crossroads: Counter-terrorism and the Internet, Texas National Security Review*, at 85 (2019).

[51] *T. Keatinge & F. Keen, Social media and (counter) terrorist finance: A fund-raising and disruption tool, Studies in Conflict & Terrorism, 42(1-2), at 178 (2019).*

[52] For example, a call for funding by the Nafir al Aqsa Campaign of US$2,500 to “equip a mujahid” with a Kalshnikov, ammunition vest, military clothing, ammunition, and military boots.

[53] For example, a post from the Twitter account (@Nafeer_aqsa100, now suspended) solicits funding for a range of weapons: sniper rifle, US$6,000; rocket propelled grenade launcher, US$3,000; and a PK machine gun, US$5,500.

[54] *M. Freeman, Sources of terrorist financing: theory and typology. In Financing Terrorism, Routledge, at 7 (2016).*

[55] *Emerging Terrorist Finance Risks, FATF. October 2015,* available at: http://www.fatfgafi.org/media/fatf/documents/reports/Emerging-Terrorist-Financing-Risks.pdf, *last visited on 15 April 2021.*

funds also complements the broad and frequent use of online platforms by terrorist organizations to promote their propaganda, document, and advertise their experiences and achievements.[56]

2.1.2.4. Recruitment and data mining

In terrorists' eyes, the Internet is a vast database that offers billions of free information pages. Terrorists can learn various details about targets such as public buildings, public transportation facilities, activities, and even counterterrorism measures from the Internet. In this way, they could organize terrorist activities with more significant influence while ensuring their safety.

Numerous tools are available to facilitate such data collection, including websites, search engines, email distribution lists, and chat rooms. Many websites offer their own search tools to extract information from their database. Keyword searching in online newspapers and journals is also a convenient way to collect information.

Terrorists also use the Internet to target potential members. Like marketing companies view members' information to find potential customers and select products to promote them, terrorist groups can also view people's information to decide whom to target and how to approach each individual, known as narrowcasting.[57] This targeting strategy enables terrorists to communicate with specific groups in public defined by values, preferences, religions, and demographic attributes. Increasingly, terrorist groups and their sympathizers use online communities like Facebook, Myspace, and their Arabic equivalents to target potential members.

2.2. The Enhanced Power of Private Companies and the Diminishing Power of the States

Terrorist groups have taken advantage of various online platforms for their activities. As online content continues to be generated at a staggering rate, controlling the flow of this content faces significant challenges. Tech companies obtained more substantial power in the digital context deriving from their mastery of digital technologies. This digital power enabled them to have significant economic, technological, and political influence.[58] Online platforms have considerable influence in shaping the information disseminated, and they gradually have the de facto authority when it comes to regulating online content.[59] There is a trend that tech companies running these online platforms are better positioned to regulate their functioning, while State powers in this respect may be more limited because of the lack of technical and human resources.[60] As a result, some states are calling for strict regulation of the liability of Internet intermediaries,[61] requesting them to take proactive measures such as monitoring and tracking.[62]

2.2.1. Private sector's enhanced digital power

In the digital context, internet intermediaries developed more power deriving from their mastery of digital technologies. This digital power could be divided into three overlapping and interacting spheres:

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[56] *See McCann, supra* note 24.

[57] *C. J. Heyes, Situating Genealogies of Terrorism. Foucault Studies, 1(28), at 17 (2020).*

[58] *P. Swabey & M. Harracá, Digital power: How Big Tech draws its influence, Tech Monitor, 4 March 2021, available at https://techmonitor.ai/boardroom/power-of-tech-companies, last visited on 12 June 2021.*

[59] *See Huszti-Orban, supra note 22*, at 227.

[60] Ibid.

[61] *See Toor, supra note 11.*

[62] *S. Gibbs, Facebook and YouTube face tough new laws on extremist and explicit video, The Guardian, 24 May 2017, available at https://www.theguardian.com/technology/2017/may/24/facebook-youtube-tough-new-laws-extremist-explicit-video-europe, last visited on 15 April 2021.*

economic power, technological power, and political power. [63]

2.2.1.1. Economic power

Many tech giants combined the Internet to develop their new platform business models in the digital context. This platform model enables them to collect more data about their users and expand their significant influence globally.[64] Besides, the vast data collection results in information asymmetry, which gives these companies another source of economic power.[65] When platform operators have collected enough data from their participants, they can predict their user's behaviours while users have little knowledge about their rules and logic. Hence, users are becoming more transparent while the rule of online platforms remains vague. Such platform power and information asymmetry have given those tech giants an unprecedented ability to determine the rules for larger sections of the economy and provide them with more opportunities and competence to lead to market dominance. The economic power of the tech giants sometimes could be comparable to that of states when it becomes an essential component of the states to govern their citizens. As many states are promoting e-government depending on commercial technologies for national security, emergency response, law enforcement, and other public needs, people's ability to opt-out of using digital technologies for many of the basic functions of citizenship ad public life is diminishing. Hence, private companies could intervene at the population level in ways that have implications for both public and daily life.

2.2.1.2. Technological power

Online platforms also have considerable technological power because they can design the infrastructure for economic, social, and political processes. It could also be called the encoding power.[66] This power enables them to decide what kind of content can or cannot be on their platforms based on their own Terms of Service, Community standards, or other rules.[67] These private regulatory rules are pre-established and unilaterally imposed on all users when they want to access the service, providing platforms with quasi-normative power to regulate users' online behaviour. By designing and operating the infrastructure, internet intermediaries could determine the rules for large sections of the economy and shape the actions of their users.[68] This power could extend to contents that users are authorized to share. It could also influence users' decision-making and the enforcement of their decisions. Also, Platforms frequently enjoy quasi-adjudicative power by requiring that disputes with users are settled via internal or other alternative dispute resolution or remedy mechanisms.

2.2.1.3. Political power

Furthermore, internet intermediaries have further been instrumental in disseminating information about political developments at home and abroad. These companies have brought many conveniences to people's lives through the innovation they created, which created a tacit alliance with consumers.[69] Hence, they have another source of political power with a highly engaged and often advocative customer base. Furthermore, some social media platforms are so dominant in some countries and districts that

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[63] *See Swabey etal, supra* note 57.

[64] *R. Mansell, Platforms of power. Intermedia,* 43(1), at 20 (2015).

[65] *S. K. Naqvi & F. Shahzad & I. U. Rehman & F. Qureshi & U. Laique, Corporate social responsibility performance and information asymmetry: The moderating role of analyst coverage. Corporate Social Responsibility and Environmental Management, at 2 (2021).*

[66] *See Swabey etal, supra* note 57.

[67] E.g., *Google's Community Guideline, available at https://about.google/community-guidelines/, last visited on 10 June 2021.*

[68] *K. Perset, The economic and social role of Internet intermediaries, at 38 (2010).*

[69] *See Swabey etal, supra* note 57.

they have become the primary source of information, including public interest information. For example, in the US, many young adults access political information mainly through social media, giving these internet intermediaries' algorithms immense power over the topics that people become aware of and how they are presented.[70] Another example can be seen in Twitter's decision to delete Donald Trump's account, which has been seen as acknowledging that tech companies are not just conduits for the information that third parties publish on their platforms.[71]

Besides, technologies have provided new means for online platforms to control their contents. Online platforms have significant power in shaping the information, which means that they also have de facto authority to regulate online content. As many individuals depend on these platforms to obtain information, these actors can significantly influence individuals' access to information, freedom of thoughts, expression, and association. What is more, there is also a great possibility that these online platforms will influence the democratic society, including electoral processes, by putting effects on individuals.

2.2.2. Public sector call for cooperation with private companies

In recent years, there has been an increasing trend that Internet intermediaries are under pressure to provide a platform for and curate third-party content to monitor and police on behalf of the State. This trend is motivated by the broad use of online platforms, particularly by terrorist groups, as tools for various terrorist activities. There are clear expectations of the State that internet intermediaries could take more responsibility for illegal third-party content. Some policymakers have expressed their dissatisfaction with the efficiency of monitoring terrorist and violent extremist content and have warned internet platforms about the need to "do more" if they want to avoid State intervention through binding regulation and sanctions.[72]

Given the use of online platforms by terrorist groups and their supporters and the rise in fatal attacks across Europe, it is inevitable that the role of Internet intermediaries in the fight against terrorism is increasingly questioned. In June 2017, British Prime Minister Theresa May and French President Emmanuel Macron agreed on the "French-British Action Plan on Internet Security."[73] This plan prioritizes removing illegal content from the Internet, placing a responsibility on companies to establish an "industry-led forum" that will automate the detection and suspension or removal of illegal content. Subsequently, the Global Internet Forum to Counter Terrorism (GIFCT) followed the plan, combining Facebook, Twitter, Microsoft, and YouTube. [74] Another example is the Christchurch Call to Action to Eliminate Terrorist and Violent Extremist Content Online, initiated by New Zealand and France after the Christchurch attack in March 2019.[75] The Call highlighted the urgent need to eliminate terrorist and violent content online and ensure a free, open, and secure internet. It promoted enhanced cooperation

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[70] *D. Wilding & P. Fray & S. Molitorisz& E. McKewon, The impact of digital platforms on news and journalistic content. University of Technology Sydney, NSW, at 26 (2018).*

[71] *K. Conger & M. Isaac, Inside Twitter's Decision to Cut Off Trump, The New York Times, 16 Jan 2021, available at https://www.nytimes.com/2021/01/16/technology/twitter-donald-trump-jack-dorsey.html, last visited on 10 June 2021.*

[72] *K. McCann, Facebook "must pay to police internet" or face fines: UK Parliament, The Canberra Times, 30 April 2017, available at https://www.smh.com.au/technology/facebook-must-pay-to-police-internet-20170501-gvvz2e.html, last visited on 15 April 2021.*

[73] *GOV.UK, French-British Action Plan: Internet Security, 14 June 2017, available at https://www.gov.uk/government/publications/french-british-action-plan-internet-security, last visited on 15 April 2021.*

[74] Launch of Global Internet Forum to Counter Terrorism—Tech Against Terrorism, available at https://www.techagainstterrorism.org/2017/07/26/launch-of-global-internet-forum-to-counter-terrorism/.

[75] *Christchurch Call to Action to Eliminate Terrorist and Violent Extremist Content Online, available at https://www.christchurchcall.com/christchurch-call.pdf, last visited on 2 July 2021.*

between various stakeholders, including governments, civil society, and online service providers. A series of collective measures have been achieved, including developing effective interventions based on information sharing, developing technical solutions to remove, detect and prevent terrorist and violent extremist content, and ensuring appropriate cooperation with and among law enforcement.[76] At present, 55 countries, three international organizations, and ten online service providers have declared their support for the Christchurch Call.[77]

2.3. The Need to Rethink the E-Commerce Directive (ECD) relating to Intermediary Liability

Intermediaries' liability for illegal content has been discussed for a long time since the early age of the Internet. In the EU, the most important provision related to intermediaries' liability could be found in Article 14 of the ECD,[78] introducing the NTD mechanism as an immunity approach for internet intermediaries. The NTD serves as the general legal framework for illegal content removal at the EU level. However, it still failed to offer a harmonized and coherent approach to remove all types of illegal content in the EU. Different approaches are applied depending on the national legislation of the Member States, type of content, and platforms.[79] With the staggering rate of terrorist content generated online, immunity approaches should be developed considering the different roles these intermediaries may play. A more aligned approach is needed to improve the efficiency of counterterrorism, which could reduce the cost of compliance for online platforms and contribute to the development of the Digital Single Market.

2.3.1. The ECD and the NTD mechanism

The NTD is a mechanism where an Internet intermediary is noticed directly by a private entity, including an individual, company, rightsholders organization, to remove or disable access to specific information in response to an infringement of their rights.[80] It is the intermediaries' task to assess whether the complaint is credible and whether the content at issue is infringing or illegal. Then the intermediary should decide either to remove the content or to keep it available. Therefore, NTD is a two-stage mechanism where both rightsholders and intermediaries are involved in enforcing rights on the Internet.[81]

NTD mechanisms can be found in regulatory frameworks at national and regional levels, including the US Digital Millennium Copyright Act (DMCA) [82]and the ECD. The procedure in the DMCA relates to the infringement of copyright exclusively, which allows and expects Internet intermediaries to disable access to contents or activity claimed to be infringing if they act in good faith in response to a claim or based on facts that the content or activity is infringing.[83] In the EU, the NTD mechanism is implied but not

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[76] Ibid.

[77] *Supporters of Christchurch Call, available at https://www.christchurchcall.com/supporters.html, last visited on 2 July 2021.*

[78] *See* the ECD, *supra* note 27.

[79] *See* the ECD, *supra* note 27, article 22.

[80] Notice and take down procedure is implicitly given in article 14 of the E-Commerce Directive. Whenever an ISP receives a complaint –a notice- about illegal or unlawful content, the ISP has to decide whether the information is indeed illegal or unlawful and if so, it should remove the website from its server or block access to it –take down, *supra* note 28.

[81] *M. Husovec, The promises of algorithmic copyright enforcement: Takedown or Staydown: Which is superior: And why, Colum. J.L. & Arts 42(1), at 53 (2018).*

[82] The Digital Millennium Copyright Act of 1998, 17 USC § 512 (DMCA).

[83] *S*ee DMCA*, supra* note 82, (n 4) § 512 (g)(1).

directly provided in Article 14 ECD. The provision offers a so-called 'safe harbour.'[84] According to Article 14 ECD, hosts of third-party content are not liable, as long as:

"(1) they do not have actual knowledge of the illegality of that content and, as regards claims for damages, awareness of facts or circumstances from which the illegality is apparent; or

(2) upon obtaining such knowledge, they act expeditiously to remove or disable access to the content."[85]

Besides, Article 15(1) ECD additionally prohibits general obligations on online hosts to monitor content on their platform or actively seek out facts or circumstances that indicate illegal activities. Hence, while the notice is not the only way for hosts to obtain actual knowledge or awareness, the prohibition of general monitoring in Article 15 ECD makes it the most common way.

The ECD sets the horizontal regulation for all illegal content online; no matter whether sanctions are treated as civil, administrative or criminal, the safe harbour approach is offered to Internet Intermediaries without discrimination and without examining the cause of liability.[86] The scope of the illegal contents may derive from private law, such as copyright infringement or defamation. They also derive from criminal law in hate speech, child pornography, and terrorist activities.[87] The horizontal approach to intermediary liability is based on the technical perspective, which states that hosting activities are the same regardless of the branch of law involved. Hence, by providing a single set of rules, the EU aims to offer comprehensive protection to intermediaries that are independent of specific wrongdoing levelled against them.[88]

2.3.2. The limitation of the ECD and the NTD mechanism

Intermediary liability is a cross-border problem that needs a uniform European solution. However, the ECD does not harmonize the conditions for holding intermediaries liable but only for exempting Internet intermediaries from liability. Besides, the ECD fails to provide a detailed guideline for the process of the NTD. The absence of concrete guidelines leads to different jurisdictions in the Member States of the EU when interpreting rules concerning fundamental rights. [89] For example, in France, police bodies and administrative authorities can remove or block terrorist content online without a court order. In Turkey, even government ministries may request the removal or blocking of terrorist content in emergency cases. Simultaneously, other states, such as Spain, require a court order or judicial confirmation of the decision before removing or blocking it.[90]

Such fragmentation has led to undesirable side effects on internet intermediaries and victims of illegal content to exercise their human rights. The provision of liability exemption has led them to follow two

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[84] Hosting providers can benefit from a liability exemption if they act expeditiously to remove or disable access to information upon obtaining knowledge about its illegal character.

[85] *See* the ECD*, supra* note 27, art. 14.

[86] *C. Angelopoulos, & S. Smet, Notice-and-fair-balance: how to reach a compromise between fundamental rights in European intermediary liability. Journal of Media Law, 8(2), at 266 (2016).*

[87] Commission Staff Working Paper, Online Services, Including E-Commerce, in the Single Market, SEC (2011) 1641 final, 11 January 2012, available at https://eurlex.europa.eu/legalcontent/EN/TXT/PDF/?uri=CELEX:52011SC1641&from=EN.

[88] *M. Peguera, The DMCA safe harbors and their European counterparts: A comparative analysis of some common problems. Colum. JL & Arts, 32, at 482. (2008).*

[89] *A. Kuczerawy, From 'Notice and Take Down'to 'Notice and Stay Down': Risks and Safeguards for Freedom of Expression. The Oxford Handbook of intermediary liability online, at 4 (2019).*

[90] *Council of Europe, Comparative study on blocking, filtering and take-down of illegal internet content, at 15.(2017) Available at https://edoc.coe.int/en/internet/7289-pdf-comparative-study-on-blocking-filtering-and-take-down-of-illegal-internet-content-.html. Last visited 2 July 2021.*

extremely opposed alternatives: On the one hand, they could adopt the interpretation followed by the countries with the most restrictive rules and remove content at a large scale without careful assessment. In this way, they could ensure the consistency of their response in the EU and obtain immunity from intermediary liability. However, such an approach could result in over removal and has an apparent negative influence on freedom of expression. On the other hand, internet intermediaries could maintain a neutral position not only when facing severe infringement of human rights but also against risks regarding cybersecurity. However, the moderation of illegal content would be less effective, leading to concerns about cybersecurity. It could also lead to less trust from platform users, harming the accountability of internet intermediaries. [91]

Furthermore, the horizontal intermediary liability approach in the EU could not be taken for granted. Current provisions of the ECD are not the final answer on the internet intermediaries' liability in Europe. Article 21 of the ECD provides the possibility of introducing a complete NTD procedure at the European level.[92] Though article 15 of the ECD prohibits the Member States from imposing a general monitoring obligation, it does not automatically cover monitoring obligations in specific cases and, in particular, does not affect orders by national authorities under national legislation.[93] Online platforms can apply proactive measures such as monitoring to tackle and remove illegal content online according to the national legislation, considering the type and risks of the content. Hence, it is possible for tech companies to apply a series of practical measures such as software and automatic tools to curtain specific types of content, such as terrorist content online. As a result, an alternative proposal for counterterrorism online is encouraged to move from the horizontal approach of the safe harbour regime towards a more vertical and aligned approach with a system of Notice and Action (NA) in the EU. In this way, the cost of compliance for online platforms, including for new entrants, could be reduced. It could also benefit the development of the Digital Single Market significantly.

In May 2016, the European Commission introduced the new NA mechanism on 'Online Platform and the Digital Single Market.'[94] It suggested a mutation from "takedown" to a more flexible "action," which implied a move away from the single-path method for intermediary liability. The Commission stated that different categories of illegal content require different approaches considering the NA procedures. [95] In other words, the Commission is considering a transition from a horizontal approach to a vertical approach to intermediary liability.

3. Current EU Legislations of Intermediary Liability for Counterterrorism

As concluded in the previous chapter, as governments are calling for cooperation with private companies in counterterrorism, there is a trend that internet intermediary liability in the EU is shifting from liability to responsibility. The former is a negligence-based approach, while the latter emphasizes the need for proactive measures. Following the transition toward a vertical approach to intermediary liability, the European Commission has proposed several activities regarding "voluntary measures" to form new legal obligations for Internet intermediaries in recent years. The critical activity is found across four successive instruments: The Code of Conduct on hate speech in 2016,[96] the Communication on Illegal

[91] See *Stalla-Bourdillon*, *supra* note 18.

[92] *See* the ECD, *supra* note 27, art. 21.

[93] *See* the ECD, *supra* note 27, recital 47.

[94] Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, 'Online Platforms and the Digital Single Market', COM (2015) 288/2, 26 May 2015.

[95] Ibid, at 7.

[96] European Commission, 'Code of Conduct on Countering Illegal Hate Speech Online', available at

Content in 2017,[97] the Recommendation on Illegal Content in 2018,[98] and the Communication on "disinformation" in 2018.[99] This chapter explores the current EU legislation of intermediary liability for counterterrorism.

3.1. The Communication on Illegal Content in 2017

The Communication on Illegal Content in 2017(hereafter in this subsection, the Communication) laid down some guidelines and principles for online platforms to fight against illegal content online. It suggested a multi-stakeholder model for online content regulation.[100] The Communication aimed to enhance the implementation of practices for the prevention, detection, removal, and disabling of access to those contents to ensure the efficiency, transparency of their activities, and the protection of fundamental rights. Besides, it also clarified online platforms on their liability when they take proactive measures to detect, remove or disable access to illegal contents.

In particular, the Communication emphasized the serious threat of online terrorist materials and the dissemination of such content, which would lead to significant harm to security and safety and the dignity of victims.[101] Concerning the terrorist attacks in the EU and the proliferation of online terrorist propaganda, the European Council stated that it "expects the industry to develop new technology for automatic detection and removal of terrorist content. It should be complemented by the relevant legislative measures at the EU level when necessary."[102] Similarly, the European Parliament also suggested online platforms to strengthen measures to tackle illegal and harmful content and called on the Commission to develop related proposals.[103]

3.1.1. Notify mechanism

The Communication introduced trusted flaggers[104] to provide expertise in notifying potentially illegal content on platforms. These flaggers are specialized entities with specific expertise in identifying such content online, contributing to higher quality notices and faster take-downs. Compared to general users, trusted flaggers have more expertise and could work with higher quality. Hence, they are highly recommended for counterterrorism. For example, Europol's Internet Referral Unite (IRU) is a law enforcement authority with the necessary expertise to assess the legality of given content. The IRU

https://ec.europa.eu/info/sites/info/files/code_of_conduct_on_countering_illegal_hate_speech_online_en.pdf.

[97] European Commission, Tackling Illegal Content Online Towards an enhanced responsibility of online platforms

COM/2017/0555 (Communication on Illegal Content), available at https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52017DC0555.

[98] Commission Recommendation (EU) 2018/334 of 1 March 2018 on measures to effectively tackle illegal content online C/2018/1177 (Illegal Content Recommendation), available at https://eur-lex.europa.eu/legal-content/EN/ALL/?uri=CELEX%3A32018H0334.

[99] European Commission, 'Tackling Online Disinformation: A European Approach', COM (2018) 236 (Disinformation Communication), available at https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52018DC0236.

[100] *See Communication to Illegal Content, supra* note 97, at 3.

[101] *See Communication to Illegal Content, supra* note 97, at 2.

[102] European Council Conclusions, ST 8 2017 INIT, 22 and 23 June 2017, G7 Taormina Statement, 26 May 2017, and G20 leader's declaration, 8 July 2017, available at https://www.consilium.europa.eu/media/23985/22-23-euco-final-conclusions.pdf.

[103] European Parliament resolution of 15 June 2017 on online platforms and the digital single market (2016/2276(INI)) OJ C 331, 18.9.2018, p. 135–145 available at https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52017IP0272.

[104] *See* Communication on Illegal Content*, supra note 97, at* 8.

could act as an accountable flagger to assess whether a given content constitutes terrorist content.[105] It could be achieved within an EU standardization framework. However, a series of criteria should be considered to build the framework, including the respect of fundamental rights, democratic values, a uniform training standard, and quality assurance, and sufficient safeguards.[106] Besides, trusted flaggers should also be supervised to prevent the abuse of the system.

The Communication also encouraged online platforms to provide an accessible and user-friendly mechanism for ordinary users to notify content that is considered to be illegal.[107] For example, the Audio-Visual Media Service (AVMS) Directive[108] provides that video-sharing platforms should establish and operate transparent and user-friendly mechanisms for users to report or flag the platform of illegal content.[109] The mechanisms should also enable effective ways for platforms to explain to users the effect that has been given to the reporting and flagging.[110]

The notify mechanism could be an effective tool to detect and remove terrorist content online, considering the speed and accuracy it could achieve. However, there are also concerns that the Communication puts huge faith in using trusted flaggers, enabling them and ordinary users to decide the legality or illegality of the content online without proper review. It is a fundamental principle that these decisions should be made by an independent judicial authority. [111] However, the Communication ignored the principle. The absence of judicial oversight could be problematic when determining whether the content is illegal or just a strong-worded expression of political or religious views.

3.1.2. Fast removal of illegal content

The Communication also required online platforms to act 'expeditiously' to remove illegal content once they knew its existence to benefit from the liability exemption.[112] In practice, different types of content require a different amount of contextual information to determine the legality of the content and could be treated in different ways. For example, when serious harm is at stake, such as incitement to terrorist acts, swift removal is encouraged, and specific timeframes could apply.[113]

Besides, fully automated deletion or suspension of content should be applied where the circumstances leave little doubt about the illegality of the material.[114] In general, removal deriving from trusted flagger

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[105] Ibid.

[106] *See* Communication on Illegal Content, *supra note 97, at 9.*

[107] Ibid.

[108] Directive (EU) 2018/1808 of the European Parliament and of the Council of 14 November 2018 amending Directive 2010/13/EU on the coordination of certain provisions laid down by law, regulation or administrative action in Member States concerning the provision of audiovisual media services (Audiovisual Media Services Directive, AVMSD) in view of changing market realities PE/33/2018/REV/1, available at https://eur-lex.europa.eu/eli/dir/2018/1808/oj.

[109] These contents include contents may impair user's physical, mental, or moral development, or contents containing incitement to violence, or dissemination of criminal and terrorist activities. *Supra* note 102, AVMSD, art. 6.

[110] *See* AVMSD, *supra* note 108, art 28b (3e).

[111] *EDRi, Commission's position on tackling illegal content online is contradictory and dangerous for free speech, 28 September 2017, available at https://edri.org/our-work/commissions-position-tackling-illegal-content-online-contradictory-dangerous-free-speech/, last visit 5 July 2021.*

[112] *See Communication on Illegal Content, supra note 97, at* 14.

[113] Ibid.

[114] Ibid.

notices should be addressed quickly, concerning the trusted status and expertise of the flaggers.[115] When online platforms find it challenging to assess the legality of a particular content that may concern a potentially contentious decision, they could benefit from a third party to obtain more professional advice.[116] For example, the cooperation between online platforms and competent authorities in the Member States is strongly encouraged, which could help online platforms assess online content's legality effectively.

3.1.3. Proactive measures with liability exemption

Considering the high risks and serious harms of a specific type of illegal content, the Commission encouraged online platforms to adopt effective proactive measures to detect and remove illegal content online, not only limiting themselves to reacting to notices that they receive.[117] The Commission considered that such voluntary and proactive measures do not automatically lead to online platforms losing their benefit of the liability exemption provided by Article 14 of the ECD.[118]

The provisions relating to liability in the ECD do not preclude the operation of technical systems of protection and identification and technical surveillance instruments on the condition that they are in line with EU and national law.[119] Considering the vast material intermediated by online platforms and the rapid technological progress, automatic detection and filtering technologies play an essential role in tackling, detecting, and removing illegal content online.[120] Many large platforms use matching algorithms for hashing and fingerprinting content.[121] More generally, the application and development of such technology are encouraged when serious harm is at stake.[122] Private companies are encouraged to develop an adequate uptake of innovations that may improve the efficiency and effectiveness of automatic detection procedures.[123]

Currently, the best industry practice would be the use of automatic tools to narrow down the set of content for vetting by human experts to assess the illegal nature of such content.[124] This human-in-the-loop is a crucial element of automatic procedure to determine the illegality of a given content, lower the error rate, and avoid over removal. For example, Google has applied such a mechanism to counter online terrorism. First, they use technology to help identify extremist and terrorism-related videos. Then, human experts play a role in deciding the line between terrorist propaganda and religious or newsworthy speech. After the assessment, they will remove content considered illegal and put warming and exclude monetization, comments, and endorsement from offensive but not prohibited videos. This mechanism makes a balance between freedom of expression and access to information without promoting extremely offensive viewpoints.[125] However, the Communication failed to provide a clear guideline for the human-in-the-loop procedure.

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[115] Ibid.

[116] *See* Communication on Illegal Content, *supra note 97, at* 15.

[117] *See* Communication on Illegal Content, *supra note 97, at* 10.

[118] *See the ECD, supra* note 27, art. 14.

[119] *See the ECD, supra* note 27, recital 40.

[120] *See* Communication on Illegal Content, *supra* note 97, at 13.

[121] *See* Communication on Illegal Content, *supra* note 97, at 12.

[122] *Supra* note 102.

[123] *See* Communication on Illegal Content*, supra note 97, at* 8.

[124] Ibid.

[125] *K. Walker, Four ways Google will help to tackle extremism, Financial Times, 18 June 2017, available at https://www.ft.com/content/ac7ef18c-52bb-11e7-a1f2-db19572361bb, last visit 5 July 2021.*

Besides, those proactive measures could also be applied to prevent the re-appearance of illegal content, which suggests closer cooperation between online service providers and law enforcement authorities.[126] Many online platforms have taken measures against repeat infringers, such as the suspension or determination of accounts or shadow-banning measures.[127] In particular, the EU Internet Forum applied the "Database of Hashes" to fight against terrorist content and has shown promising results.[128] Online platforms are encouraged to update their tools regularly to ensure all illegal content is captured, in line with the dynamic character of illegal content online.[129] For example, the tools used for terrorist content should be adapted to capture new and historical content and ensure its swift review and removal. Such content should be shared to cross-platform tools, cooperating with online platforms, competent authorities, and other stakeholders, including civil society.

However, the Communication strongly encouraged automatic detection and filtering technologies to detect and prevent illegal content, which could be risky for content moderation at scale. It could lead to a mandatory obligation of online platforms to apply a general monitoring mechanism, which contradicts Article 15 of the ECD. The Communication required a "duty of care" to online platforms. Once they apply those "voluntary measures" and identify the illegal contents on their platform, they are bound to act expeditiously to take down the content to avoid intermediary liability. As a result, online platforms could no longer act as a passive role because of the proactive measures that they have applied. It will lead to heavy burdens to online platforms, especially small platforms, to develop complex and costly tools.

3.1.4. Regular report of captured illegal content

Finally, a regular report to law enforcement authorities of such illegal content is essential, enabling relevant authorities to investigate and prosecute individuals or groups generating such content. Law enforcement authorities should build corresponding mechanisms to take appropriate action on these reports.[130] The SIRIUS portal established by Europol could be set as an excellent example to support the Member States in online counterterrorism investigations, enabling the cooperation between platforms and EU law enforcement.[131] Leading by Europol's European Counter-Terrorism Center and European Cybercrime Center, the SIRIUS project represents all EU Member States and 17 third countries cooperating with Europol or Eurojust. The SIRIUS project aims to help the EU law enforcement authorities to access electronic evidence for online investigations. It provides guidelines on specific

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[126] *See Communication on Illegal Content, supra* note 97, at 18.

[127] "Shadow banning" is the act of blocking a user from an online community such that the user does not realise that they have been banned.

[128] The EU Internet Forum was initially envisioned in the Commission's Communication on Preventing Radicalisation to Terrorism and Violent Extremism in 2014 to 'cooperate more closely with civil society and the private sector to address challenges faced online'. The Commission would set up a forum with key industry players to discuss a wide range of issues related to 'dangerous propaganda' online. Officially, the Forum was launched on 3 December 2015 and has worked as a facilitator of cooperation ever since. See also *B. Heller, Combating Terrorist-Related Content Through AI and Information Sharing, Algorithms, at 5 (2020),* available at https://cdn.annenbergpublicpolicycenter.org/wp-content/uploads/2020/05/Combating_Terrorist_Content_TWG_Heller_April_2019.pdf .

[129] *See Communication on Illegal Content, supra note 97, at* 19.

[130] Member States may establish obligations for information society service providers promptly to inform the competent public authorities of alleged illegal activities undertaken or information provided by recipients of their service or obligations to communicate to the competent authorities, at their request, information enabling the identification of recipients of their service with whom they have storage agreements. *See* also the E-Commerce Directive, *supra* note 27, art. 15(2).

[131] *Europol, SIRIUS Project, available at https://www.europol.europa.eu/activities-services/sirius-project, last visited on 5 July 2021.*

Online Service Providers (OSPs), including data stored by OSPs and how to request access to it. They also provide analytical and investigative tools developed by Europol and the Member States. Besides, the SIRIUS developed the Single Point of Contacts at the national level by providing training to law enforcement authorities, enabling them to share experiences, practices, and tips for electronic evidence investigation.[132]

3.2. The Illegal Content Recommendation in 2018

Many online service providers have acted on their responsibilities and made more progress for counterterrorism through voluntary arrangements, such as the EU Internet Forum on terrorist content online.[133] However, notwithstanding these commitments and progress, terrorist content online remains a serious problem within the Union. The Commission issued another document to tackle illegal content online to develop faster detection and removal of illegal content online. Following the Communication in 2017, The Commission's Recommendation on measures to effectively tackle illegal content online (The Illegal Content Recommendation, the Recommendation hereafter in this subsection) set out certain principles to guide the Member States and service providers in tackling illegal content online. The document provided two types of recommendations, including general recommendations concerning all types of illegal content and a specific section on terrorist content.

The Recommendation aimed to safeguard the balanced approach that the e-Commerce Directive seeks to ensure. It encouraged "proportionate and specific proactive measures" to restrict illegal content in general, with caution with the use of automation.[134] The goal can be achieved by applying trusted flaggers and the rights-compliant criteria. [135] Besides, for the subcategory of terrorist content, the caution around automation is explicitly disavowed and added a target of removal based on notice in an hour. [136]

3.2.1. General recommendation

According to the Recommendation, online service providers are encouraged to make swift decisions on illegal content online to limit wider dissemination and harm.[137] Besides, they should provide adequate and appropriate safeguards to ensure that they act diligently and proportionately to prevent over removal.[138] The Recommendation also emphasized that due account should be taken to tackle different types of illegal content online and the specific responses, including through dedicated legislative measures.[139]

The Recommendation also proposed some proportionate and specific proactive measures for hosting service providers to tackle illegal content online without violating Article 15 ECD.[140] Those proactive measures could be applied when the illegal character of the content has already been established or when the type of content is such that contextualization.[141] Also, the nature, scale, and purpose of the

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[132] *SIRIUS, SIRIUS EU Digital Evidence Situation Report- 2nd Annual Report, 1 December 2020, at 8, available at file://vuw/Personal$/Homes/28/s2862506/Downloads/sirius_desr_2020.pdf, last visited on 5 July 2021.*

[133] *Supra* note 128.

[134] *See* Illegal Content Recommendation, *supra* note *98*, recital 24.

[135] *See* Illegal Content Recommendation, *supra* note *98*, art 25.

[136] *See* Illegal Content Recommendation, *supra* note *98*, art. 35.

[137] *See* Illegal Content Recommendation, *supra* note *98,* recital 3.

[138] *See* Illegal Content Recommendation, *supra* note *98*, art. 19.

[139] *See* Illegal Content Recommendation, *supra* note *98*, recital 7.

[140] *See* Illegal Content Recommendation, *supra* note *98*, recital 24.

[141] *See* Illegal Content Recommendation, *supra* note *98*, recital 25.

envisaged measures, the type of illegal content at issue, whether law enforcement authorities or Europol has notified the content, and whether action had already been taken should be considered.[142] The Commission had set out its view that taking such voluntary, proactive measures does not automatically lead to the platform concerned losing the benefit of the liability exemption provided for in Article 14 of the ECD.[143]

3.2.2. Specific section for terrorist content

After concerning a series of terrorist attacks in the EU and terrorist propaganda online, the European Council of 22-23 June 2017 proposed new technology and tools to improve the automatic detection and removal of content that incites terrorist activities.[144] The European Parliament urged online platforms to strengthen measures to tackle illegal and harmful content. Besides, Ministers of the Member States within the EU Internet Forum called for those companies to take more proactive measures to protect their users from terrorist content.[145]

In particular, since terrorists have become sophisticated users of the Internet for swift and broader dissemination of terrorist propaganda, there are specific recommendations relating to terrorist content proposed in Chapter 3 in addition to the general recommendations.[146] In Chapter 3, the Recommendation stated that hosting service providers should expressly state that they will not store terrorist content in their terms of service.[147] Besides, the Member States shall ensure that their competent authorities have the capability and sufficient resources to detect terrorist content and submit referrals to the hosting service providers concerned effectively.[148] Hosting service providers should send confirmations of receipt of referrals and inform the competent authority or Europol of their decision concerning the content at issue, including when they decide to remove or disable the access to content at issue or why they decided not to remove or disable access to the content.[149] Lastly, hosting service providers should assess and remove or disable access to content identified in referrals within one hour after receiving the referral as a general rule.[150]

Besides submitting and processing referrals, the Recommendation also proposed some proportionate and specific proactive measures for hosting service providers to tackle terrorist content online.[151] These measures include using automated means to detect and expeditiously remove terrorist content.[152] Besides, such automated measures could also immediately prevent content providers from re-submitting content that has already been removed or disabled the access.[153] Furthermore, considering the size and scope of the platforms and the limited resources they have, hosting service providers are encouraged to cooperate by sharing and optimizing effective, appropriate, and proportionate

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[142] *Ibid.*

[143] *See* Illegal Content Recommendation, *supra* note *98*, recital 26.

[144] *See* Illegal Content Recommendation, *supra* note *98*, recital 5.

[145] *Ibid.*

[146] *See* Illegal Content Recommendation, *supra* note *98*, Chapter 3.

[147] *See* Illegal Content Recommendation, *supra* note *98*, art. 30.

[148] *See* Illegal Content Recommendation, *supra* note *98*, art. 32.

[149] *See* Illegal Content Recommendation, *supra* note *98*, art. 34.

[150] *See* Illegal Content Recommendation, *supra* note *98*, art. 35.

[151] *See* Illegal Content Recommendation, *supra* note *98*, art. 36.

[152] *See* Illegal Content Recommendation, *supra* note *98*, art. 37.

[153] Ibid.

technological tools to prevent the dissemination of terrorist content.[154] However, these proactive measures must be applied without prejudice to Article 15(1) of the ECD.[155]

Cooperation between competent authorities, individuals or entities, including non-governmental organizations, trade associations, and online platforms, is encouraged to tackle illegal content online.[156] For example, the Recommendation stated that such cooperation could benefit from the assistance of Europol when combating terrorism, online sexual abuse, and sexual exploitation of children. Also, Member states should report to the Commission on the referrals submitted by their competent authorities and the decision taken by hosting service providers upon the referrals and their cooperation with hosting service providers relating to tackling terrorist content.[157] Hosting service providers are obliged to provide all relevant information to the Commission upon its request to assist and monitor the effects of tackling terrorist content at the latest three months from its publication.[158]

Both the Communication and the Recommendation have highlighted the societal responsibilities of internet intermediaries to help tackle illegal content on their platforms. These responsibilities imply that internet intermediaries should improve both the 'Notify' and the 'Action' mechanism for better content moderation. While they still can benefit from intermediary liability immunity, they are no longer a passive role in preventing illegal content online. Instead, they are expected to have the "duty of care" to actively detect and remove these contents. Besides, cooperation between online platforms and competent authorities is encouraged for information sharing and effective NA mechanisms.

3.3. Regulation on Preventing the Dissemination of Terrorist Content Online in 2021

The most recent legal instrument is the Regulation on Preventing the Dissemination of Terrorist Content Online[159] in 2021 (hereafter, Terrorist Content Regulation or the Regulation in this subsection). The Commission announced the proposal on 12 September 2018. After a series of amendments and negotiations, the European Parliament approved the Regulation on 29 April 2021 without a plenary vote. The Regulation came into force on 7 June 2021 and will apply 12 months after that.

The Regulation aims to promote the smooth functioning of the digital single market by preventing the dissemination of terrorist content online.[160] It states that hosting service providers play a central role in information transmission and have technological means and capabilities associated with their services. Hence, they have particular social responsibilities to protect their services from being misused by terrorists and help address terrorist content disseminated through their platforms, considering the fundamental importance of freedom of expression.[161]

The Regulation applies to hosting service providers offering service in the Union, irrespective of their

[154] *See* Illegal Content Recommendation, *supra* note 98, art. 38

[155] *See* Illegal Content Recommendation, *supra* note 98, recital 28

[156] *See* Illegal Content Recommendation, *supra* note 98, recital 29

[157] *See* Illegal Content Recommendation, *supra* note 98, art.41

[158] *See* Illegal Content Recommendation, *supra* note 98, art.42

[159] European Parliament and the Council of the European Union, Regulation (EU) 2021/784 of the European Parliament and of the Council of 29 April 2021 on addressing the dissemination of terrorist content online (Terrorist Content Regulation) PE/19/2021/INIT, available at https://eur-lex.europa.eu/legal-content/en/ALL/?uri=CELEX:32021R0784#d1e1426-79-1.

[160] *See* Terrorist Content Regulation, *supra* note 159, recital 1.

[161] *See* Terrorist Content Regulation, *supra* note 159, recital 5.

place of the main establishment. [162] It lays down particular rules on reasonable and proportionate duties of care for hosting service providers and a set of measures to be put in place by the Member States.[163] It also includes strong safeguards to ensure the respect of fundamental rights, such as freedom of expression and information.[164] Besides, transparency obligations are set for hosting service providers and national authorities to publish reports. The report should include the amount of terrorist content removed, the measures applied to identify and remove terrorist content, the outcomes of complaints and appeals, and the number and type of penalties imposed on online platforms.[165] Member States are empowered to sanction non-compliance and decide on the level of penalties, which should be proportionate considering the nature of the infringement and the size of platforms.[166]

3.3.1. The definition of terrorist content

Terrorist content means material that incites or solicits the commission of the contribution terrorist offences or solicits the participation in activities of a terrorist group or glorifies terrorist activities, including by disseminating material depicting a terrorist attack. The definition includes content that guides the making and use of explosives, firearms, or other weapons or noxious or hazardous substances, chemical, biological, radiological, nuclear substances, or other methods and techniques, including selecting targets and committing terrorist offences. Such material includes text, images, sound recordings and videos, and live transmissions of terrorist offences, thereby causing a danger that further such offences may be committed.[167] Contents disseminated for educational, journalistic, artistic, or research purposes or awareness-raising purposes against terrorist activity should not be considered terrorist content.[168]

3.3.2. The designation of competent authorities

The Regulation mandates each member state to designate a competent authority, which has the power to issue, scrutinize, oversee removal orders to platforms to remove terrorist content, and impose penalties when service providers do not take necessary measures to implement removal orders.[169] A competent authority could also oversee the implementation of specific measures applied by platforms when applicable.[170] Thus, competent authorities play an essential role in determining the precarious line between content protected by freedom of expression and terrorist content that should be taken down. According to Article 3 of the Regulation, the competent authority of each member state is empowered to issue a removal order to any hosting service provider offering services within the Union and require them to remove content or disable access to it in all Member States.[171] Hosting service providers are obliged to remove terrorist content or disable access to it in all Member States as soon as possible and, in any event, within one hour from the receipt of the removal order.[172] Competent authorities are also responsible for exchanging information with each other in the EU. They should cooperate with other

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[162] *See* Terrorist Content Regulation, *supra* note 159, art. 1.

[163] Ibid.

[164] *See* Terrorist Content Regulation, *supra* note 159, art.7-11.

[165] *See* Terrorist Content Regulation, *supra* note 159, art. 8.

[166] *See* Terrorist Content Regulation, *supra* note 159, art. 18.

[167] *See* Terrorist Content Regulation, *supra* note 159, recital 11.

[168] *See* Terrorist Content Regulation, *supra* note 159, recital 12.

[169] *See* Terrorist Content Regulation, *supra* note 159, art.12.

[170] *See* Terrorist Content Regulation, *supra* note 159, art.5.

[171] *See* Terrorist Content Regulation, *supra* note 159, art 3(1).

[172] *See* Terrorist Content Regulation, *supra* note 159, art. 3(3).

competent authorities and the Europol when necessary to enhance coordination, avoid effort duplication, and avoid interference with investigations in the different Member States.[173]

The designation of the competent authority in the Member States is significant progress, which could enable a faster and more accurate take-down mechanism. Competent authorities are 'trusted flaggers' that can detect terrorist content and notify service providers and decision-makers who can assess these contents with their expertise. Besides, the cooperation between competent authorities and online platforms could contribute to more compelling content moderation. First, competent authorities could play a trusted role in providing suggestions to online platforms when they find it challenging to assess the legality of specific content. Second, competent authorities work as a supervisor of online platforms for the action toward possible terrorist content. Besides, competent authorities also work as reporters of terrorist content moderation. Annual transparency reports published by competent authorities enhance the accountability of the NA system, and the information sharing between competent authorities in the Member States also enhances coordination in the EU.

Under the Regulation, competent authorities play an essential role in content moderation. They have significant power in the freedom of expression and the access to information for internet users. Besides, they are also empowered to decide penalties on service providers when they fail to take down terrorist content following the removal order. It is a fundamental principle that an independent judicial authority should own such power since their decision could significantly influence fundamental rights, including freedom of expression, information, and business freedom.[174] However, the Regulation does not require such independent judicial power of competent authorities, which leads to the concern that they may abuse power and interfere with human rights. Hence, the designation of competent authorities should follow strict rules and consider a series of aspects when enforcing the Regulation, including their judicial power, expertise in terrorism and counterterrorism, and knowledge of online content moderation.

3.3.3. Removal orders in one hour

One of the most controversial rules that the Regulation introduces is the one-hour timeline removal order. Following the Recommendation in 2018, the Regulation highlighted the swift removal of terrorist content online again and justified the one-hour timeline removal by a binding provision. According to Article 3 of the Regulation, hosting service providers are required to remove terrorist content or disable access to it after receiving a removal order from any competent authority in the EU Member States, following an assessment by the competent authorities.[175] The removal order should include a sufficiently detailed statement explaining why the content is considered terrorist content and reference the relevant categories of terrorist content. Besides, the removal order should classify the content at issue as terrorist content and provide sufficient information to locate the content by providing an exact URL and other additional information when necessary, such as a screenshot of the content.[176] Furthermore, the statement of reasons must allow the hosting service provider and the content provider to exercise their right to judicial redress effectively.[177]

In particular, the competent authority has the power to issue the first removal order to a hosting service provider without having provided information on procedures and applicable deadline 12 hours in advance in justified emergency cases.[178] For example, they could decide the first removal order when

[173] *See* Terrorist Content Regulation, *supra* note 159, art. 14(1).

[174] *Council of Europe, European Convention on Human Rights (ECHR), CETS No. 005, 1950, art. 5.*

[175] *See* Terrorist Content Regulation, *supra* note 159, art.3.

[176] Ibid.

[177] *See* Terrorist Content Regulation, *supra* note 159, recital 18.

[178] *See* Terrorist Content Regulation, *supra* note 159, recital 17.

removing or disabling access to the content when facing serious harm, including an imminent threat to life or the physical integrity of a person.[179] In this way, hosting service providers could swiftly take down the terrorist content and minimize possible harm to human beings.

Besides, the Regulation also requires hosting service providers to set contact points for communication with competent authorities.[180] The competent authority should transmit the removal order directly to the contact point of the hosting service provider by any electronic means in line with the protection of personal data. When the hosting service provider's main establishment is in another Member State, a copy of that order should be transmitted at the same time to the competent authority of that Member State.[181] The competent authority of the Member State where the hosting service provider has its main establishment or legal representative should have the possibility to scrutinize the removal order to determine whether it seriously violates the Regulation or fundamental rights enshrined in the Charter.[182] The content provider and the hosting service provider have the right to request a review by the competent authority, who is obliged to decide whether the removal order contains such violations.[183]

The one-hour removal order is developed from Article 35 of the Illegal Content Recommendation, which requires hosting service providers to assess and remove terrorist content identified by competent authorities' referrals within one hour. There are some reasons for the short timeline. First, terrorist content online could result in serious harm to human rights. To control the spread of terrorist content and avoid excessive harm, particularly fast removal could apply in cases of incitement to terrorist acts. Second, removal orders deriving from competent authorities could be addressed quickly concerning the trusted status and expertise of the competent authorities. Hence, the short timeline removal order could still ensure its accuracy for content moderation.

Another progress from the Recommendation is the requirement of sufficient and detailed statements in the removal order. The statement should not only explain why the content at issue is considered terrorist content but also provide the information of its location, enabling service providers to assess and remove the content at issue with a clear understanding and higher efficiency. It also guaranteed the transparency of the removal order, giving hosting service providers and content generators the opportunities to exercise their right to judicial redress effectively. Hence, the Regulation could still guarantee the protection of human rights while enabling the fast removal of terrorist content. According to EU Home Affairs Commissioner Ylva Johansson, "This regulation will make it more difficult for terrorists to abuse the internet to recruit online, to incite attacks online, to glorify their atrocities online."[184]

However, the introduction of the removal order has also received heavy criticism. The one-hour timeline of the removal order is too short for service providers, bringing heavy burdens to them, especially for small companies. Under such circumstances, service providers either choose to remove the content swiftly without careful assessment or apply automatic measures to respond to the removal order. An efficient mechanism should minimize the costs of harm and the costs of removing terrorist content, considering each actor's interest. However, there is no evidence that the design of the removal order

[179] Ibid.

[180] *See* Terrorist Content Regulation, *supra* note 159, art. 15.

[181] *See* Terrorist Content Regulation, *supra* note 159, recital 19.

[182] *See* Terrorist Content Regulation, *supra* note 159, recital 20.

[183] *See* Terrorist Content Regulation, *supra* note 159, art. 5 (7).

[184] *European Commission, Commissioner Johansson's speech for the Plenary Debate on Preventing the Dissemination of Terrorist Content Online, 28 April 2021, available at https://ec.europa.eu/commission/commissioners/2019-2024/johansson/announcements/commissioner-johanssons-speech-plenary-debate-preventing-dissemination-terrorist-content-online_en, last visited on 6 July 2021.*

could efficiently share the burdens for terrorist content moderation and optimize the interest of different actors involved.

3.3.4. Specific measures

The Regulation also recommends a list of specific measures for hosting service providers to prevent disseminating terrorist content to the public when exposed to terrorist content. Those measures include:

"(a) appropriate technical and operational measures to identify and expeditiously remove or disable access to terrorist content.

(b) easily accessible and user-friendly report or flag mechanisms for users.

(c) other mechanisms to increase the awareness of terrorist content on its services, such as for user's moderation.

(d) other measures that the hosting service provider considers to be appropriate to address the terrorist content on their services." [185]

When applying these measures, hosting service providers shall meet several requirements to ensure the effectiveness of the mechanism and the protection of the fundamental rights of users. First, they shall consider various accounts, including the seriousness of the level of exposure to the terrorist content, technical and operational capabilities, financial strength, the number of users, and the amount of content that they provide, so that they could take corresponding measures to mitigate the level of exposure to terrorist content effectively. Second, they shall respect the rights and legitimate interests of the users, especially their freedom of expression and information, respect for private life, and personal data protection. Also, Specific measures shall be applied diligently and non-discriminatory with appropriate safeguards to ensure effectiveness and accuracy.[186]

Unlike the Recommendation, the Regulation uses the norm of "specific measures" instead of "proactive measures" to avoid the misunderstanding that the Regulation encourages service providers to apply general monitoring measures for counterterrorism. The Regulation states that the application of specific measures shall be without prejudice to Article 15 ECD. It also addresses the protection of fundamental rights of platform users, providing several requirements of specific measures and safeguard mechanisms. The introduction of specific measures is good progress of the vertical measures for intermediary liability mechanism. It addresses service providers' duties of care to detect and prevent illegal activities. It also reflects the hope of public sectors to cooperate with private companies for better content regulation. While taking more responsibilities, private companies could also benefit from cooperating with a safer, accountable, and smoothy functioning online environment. The better services they provide could enhance the trust between users and service providers and bring them more economic interest. A safer platform environment could contribute to platform developments in the long term.

However, the application of specific measures should strictly follow the principle of proportionality to protect the fundamental rights of platform users. Under the Regulation, automatic measures are not prohibited. Service providers have the freedom of choice to apply different measures based on their own assessment. The lack of coherent guidelines raises concerns about human rights. A uniform and detailed guideline should be developed to enforce specific measures.

[185] *See* Terrorist Content Regulation, *supra* note 159, art. 5.

[186] Ibid.

4. Terrorist Content Regulation and Human Rights Issues

Based on the recent legal instrument research, it is justified to state that there is a trend from liability toward responsibility for Internet intermediaries for terrorist content regulation in the EU. As sophisticated users of digital technologies, Internet intermediaries play a more important role in terrorist content moderation in the digital context. Under the Terrorist Content Regulation, Internet intermediaries are considered ideal cooperators of the Member States for counterterrorism online. However, the Regulation still lacks coherent guidelines for sufficient protection of human rights. Hence, the enforcement of the Regulation should be carefully considered and need further interpretation to ensure the effectiveness and consistency of terrorist content regulation within the EU. This chapter will explore the possible human rights issues of the Terrorist Content Regulation and propose possible ways to balance the intermediary responsibility and the protection of human rights. Hence, it answers the sub-question (4) and (5).

4.1. Issues of Terrorist Content Regulation

4.1.1. Non-dependent competent authority

Under the Terrorist Content Regulation, each EU Member State should designate one or more competent authorities, who are empowered to make decisions to delete terrorist content online under the Regulation. These authorities will neither necessarily be a new authority nor independent judicial authorities.[187] Though the Regulation state that these authorities must be objective, non-discriminatory, and respect the fundamental rights of human beings,[188] the lack of independence of competent authorities still leads to concerns relating to human rights. According to a joint letter to the EU Parliament by a series of human rights associations, the non-dependent competent authority would lead to excessive, arbitrary, or discriminatory interference with the freedom of expression, religion, assembly, and association online.[189] The freedom of information and lawful expression is protected and should only be limited by a court or upon legitimate request. Removal orders issued by competent authorities without judicial power would breach the provision of the Charter.

Another concern voiced by many human rights associations is that any competent authority will have the power to issue a removal order to delete content anywhere in the EU within one hour.[190] As a result, The Regulation grants the EU Member States the unilateral power to order online platforms to remove content hosted in another Member State without any judicial review or consideration of the rights of content generators.[191] They can extend their enforcement jurisdiction beyond their territory without prior judicial approval on the lawfulness of the order. The strong power of competent authority will constitute serious threats to the rule of law in the EU Member States, and the mutual trust that underpins the European judicial cooperation might be seriously undermined. For example, it would open a way for

[187] *See* Terrorist Content Regulation, *supra* note 159, recital 35.

[188] *See* Terrorist Content Regulation, *supra* note 159, art. 13.

[189] *EMPs, Joint Letter to EU Parliament: Vote Against Proposed Terrorist Content Online Regulation, Human Rights Watch, 25 March 2021, available at https://www.hrw.org/news/2021/03/25/joint-letter-eu-parliament-vote-against-proposed-terrorist-content-online, last visit 14 June 2021.*

[190] Ibid. Human rights associations including Civil Liberties Union for Europe (Liberties), European Digital Rights (EDRi) have expressed their concerns with human rights of the Proposed Terrorist Content Regulation. However, the new enforced Terrorist Content Regulation still remain the provision that empowers competent authorities to issue cross-border removal orders without any check.

[191] *S. Ajay, Civil rights groups call EU online terrorist law a risk to fundamental rights, Jurist, 27 March 2021, available at https://www.jurist.org/news/2021/03/civil-rights-groups-call-eu-online-terrorist-law-a-risk-to-fundamental-rights/, last visit 14 June 2021.*

authoritarian regimes to silence their critics abroad by issuing removal orders beyond their borders, effectively extending their jurisdiction beyond their borders.[192] Furthermore, the procedure of minimal notification and verification in the Regulation does not contain sufficient safeguard against stated overreach and abuse of power. It will not solve disagreement among the Member States on what constitutes terrorist content, art, satirical commentary, or journalistic reporting.

4.1.2. Limited timeline removal order

The Introduction of removal orders has also received heavy criticism because they were thought to lead to over-removals. The Regulation introduced an inflexible one-hour timeline for removal orders. One reason for this short response is that the most intense dissemination of terrorist content online tends to happen in the first hour after its posting. However, the short timeline set for the removal order seems ineffective in preventing the intense spread of terrorist content. In general, it also takes time for competent authorities to identify terrorist content. Besides the identification, competent authorities also have to provide sufficient information on the terrorist content in the removal order. On top of the time that the competent authority will take to process the removal order, it seems ineffective in preventing the dissemination of terrorist content.

The human rights organizations also argued that the Regulation will be "a dangerous precedent for online content regulation worldwide" and pose serious threats to fundamental rights.[193] The one-hour timeline is seen as unreasonable short, especially for small-scale platforms. Service providers must act on removal orders from competent authorities in the EU Member States within one hour of receipt or explain why they have been unable to do so. The short timeframe that the Regulation imposed on service providers to remove terrorist content strongly pushes platforms to apply automated content moderation tools to delete terrorist content on time, such as filters for uploading content. The Regulation does not prohibit hosting service providers from using automated tools if they consider it to be appropriate and necessary.[194]The possible application of automatic moderation tools is characterized by a lack of transparency and accuracy of automated decision-making.[195] Though the Regulation has already excluded materials concerning educational, journalistic, artistic, research, or awareness-raising purposes against terrorist activities as terrorist content,[196] it is impossible for automated tools to differentiate them from terrorist content itself. Increased automatic measures will result in the removal of legal content, as mentioned before. The short timeline will also incentivize service providers to minimize the review time of removal orders. Concerning the lack of judicial review of the removal orders, service providers' absence of careful review could lead to over removal of contents. The over-removal of contents could not only do harm to freedom of expression but also hinder service providers' accountabilities. Hence, instead of an unreasonable short timeline, a more flexible removal order should be developed to enable service providers to act expeditiously with less intrusive measures, ensuring the minimized interference of freedom of expression online.

4.1.3. Unregulated specific measures

Under the Regulation, hosting service providers can apply specific measures to prevent the

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[192] *Liberties EU, Free Speech Advocates Urge EU Legislators to Vote 'No' to Automated Censorship Online, 25 March 2021, available at https://www.liberties.eu/en/stories/terrorist-content-regulation-open-letter-to-meps/43410, last visit 5 July 2021.*

[193] *Supra* note 190.

[194] *See* Terrorist Content Regulation, *supra* note 159, art. 5.

[195] *E. Pírková & E. Simon, Misguided 'solution' to terrorist content will have bad consequences for our rights, Euractiv, 24 March 2020, available at https://www.euractiv.com/section/digital/opinion/misguided-solution-to-terrorist-content-will-have-bad-consequences-for-our-rights/, last visit 14 June 2021*

[196] *See* Terrorist Content Regulation, *supra* note 159, art. 1.

dissemination of terrorist content on their platforms when they consider it appropriate[197]. The Regulation does not prohibit the use of automatic measures. Besides, it depends on the hosting service provider to decide when and how to apply such specific measures without coherent guidelines from the Member States.

Requiring intermediaries to assess contents' legitimacy and character has been frequently called unfair. There are several reasons for such an opinion. First, private companies might not have enough legal knowledge to assess the legality of third parties' content. Besides, enlisting private companies to make a decision would lead to undesirable effects, which would infringe the freedom of expression of human beings. For example, in 2017, a Facebook group called "Independence of Chechnya!" was mistakenly removed for violating the platform's community standard barring "organizations engaged in terrorist activity or organized criminal activity." However, the group just functioned as advocating for the independence of the Chechen Republic of Iskeria, which was identified by the training manual as "not violating the rules." A Facebook spokesperson admitted that the removal had been made "in error" and stated that the company "sometimes goes wrong" because of "millions of reports each week." According to one source familiar with Facebook's counterterrorism policies, the volume of material often meant moderators have "less than ten seconds" to decide whether the content should be censored or not, leading to the duty of care for extremist content as a "mission impossible."[198] Hence, Facebook is also facing complaints that the platform is not censorious enough and is failing to eliminate extremist or abusive content.[199] Another example is the removal of an image posted by a prominent Emirati journalist of Hezbollah leader Hassan Nasrallah with a rainbow Pride flag overlaid on it.[200] The post was directly removed because most images contain the face of known terrorist leaders, though it was a satirical commentary on the political left who lack support for LGBTQ rights.

Hence, concerns about the freedom of expression would occur if platforms used content filters to shrink their risk of responding to removal orders. Though the Regulation does not require platforms to apply general monitor or filter content mechanisms, it does push them to apply such measures by stating that they must take steps to prevent propagation. It is up to service providers to decide how exactly they could take specific measures. While there is no legal obligation to use automated tools, filters will likely be what larger providers reach for, with the risk of unjustified, speech chilling take-downs fast following. [201] A clear and detailed guideline shall be developed to guide service providers in applying the specific measures when necessary.

4.2. The Fair Balance between Intermediary Responsibility and the Protection of Human Rights under the Terrorist Content Regulation

Under the Regulation, internet intermediaries have to decide swiftly about removing or disabling access

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[197] *See* Terrorist Content Regulation, *supra* note 159, art. 5.

[198] *N. Hopkins, Facebook struggles with 'mission impossible' to stop online extremism, The Guardian, 24 May 2017, available at https://www.theguardian.com/news/2017/may/24/facebook-struggles-with-mission-impossible-to-stop-online-extremism, last visit 14 June 2021.*

[199] *J.C. Wong, Facebook blocks Chechnya activist page in latest case of wrongful censorship, The Guardian, 6 June 2017, available at https://www.theguardian.com/technology/2017/jun/06/facebook-chechnya-political-activist-page-deleted, Last visit 14 June 2021.*

[200] *S. Cope & J. C. York & J. Gillula, Industry Efforts to Censor Pro-Terrorism Online Content Pose Risks to Free Speech, Electronic Frontier Foundation, 12 July 2017, available at https://www.eff.org/deeplinks/2017/07/industry-efforts-censor-pro-terrorism-online-content-pose-risks-free-speech, last visit 14 June 2021.*

[201] *N. Lomas, EU adopts rules on one-hour takedowns for terrorist content, Tech Crunch, 29 April 2021, available at https://techcrunch.com/2021/04/29/eu-adopts-rules-on-one-hour-takedowns-for-terrorist-content/, last visit 14 June 2021.*

to content in order to exempt themselves from possible liability. This makes them judge in their own cause. In such circumstances, the most cautionary approach is to act upon any indication of illegality without engaging in any balancing of rights that require protection, which could be burdensome and lengthy. As a result, many investigations of the illegality of the content are absent. This could lead to preventive over-removing of legitimate content. The lack of concrete guidelines would create an incentive to systematically take down materials without hearing from the party who generates the content, thus preventing such a party from its right to evidence its lawful use of the material.

Fair balance means that internet intermediaries will experience a conflict of interests. The key lies in appreciating that intermediary liability is a quintessential question of fundamental rights clashes.[202] A fair balance can only be achieved on the condition that the core of all clashing fundamental rights remains unaffected. As the ECtHR held in Delfi, a balance must be struck that retains the essence of the rights.[203] Fair balance requires a compromise solution that is adjusted to fit each situation best. Hence, Differences in impact should be reflected in the measure taken to achieve a fair balance in intermediary liability.[204]

4.2.1. Removal orders by judicial-independent competent authorities

Under the Regulation, the competent authority has the power to issue, scrutinize, and oversee removal orders to platforms to remove terrorist content in all EU Member States. They could also oversee the implementation of specific measures applied by platforms when applicable. Besides, competent authorities are also responsible for exchanging information and cooperating with other authorities in the EU. Thus, competent authorities play an essential role in preventing terrorist content and protecting the freedom of expression in the EU.

However, the freedom of information and lawful expression is protected and should only be limited by a court or upon legitimate request. Though the Regulation has addressed that the competent authorities shall have the necessary power and sufficient resources to fulfil their obligations,[205] further detailed rules should be developed to enforce the provision by the Member States. First, the Member States should ensure the judicial power of competent authorities in their countries. It could guarantee the rule of law in the EU Member States and the due process of their decisions. Second, competent authorities shall also be sophisticated users of digital technologies to accurately identify terrorist content and swift action after the detection. Third, to avoid excessive, arbitrary, or discriminatory interference with the fundamental rights of online users, competent authorities shall be equipped with sufficient knowledge about terrorist content to assess the legality of content online. In this way, they could make justified decisions and provide accountable removal orders to service providers, which will improve the efficiency of the notice and action mechanism.

However, except for the judicial independence of competent authorities in the Member States, the power of competent authorities to issue cross-border removal orders shall be carefully reconsidered. Under the Regulation, EU Member States can extend their enforcement jurisdiction beyond their terrorist without prior judicial review. It would be risky to violate the rule of law and undermine mutual trust between the Member States. As a result, cooperation between competent authorities in the Member States should be addressed for the smooth functioning of cross-border removal orders. When competent authorities in the Member States want to issue a cross-border removal order, they shall communicate with the competent authority in the corresponding Member States or a competent authority

[202] *S. Smet, Resolving Conflicts between Human Rights: the judge's dilemma. Taylor & Francis. (2016).*

[203] Case no. 64569/09, Delfi AS v. Estonia, at 110.

[204] *A. Kuczerawy, 'Intermediary Liability & Freedom of Expression: Recent Developments in the EU Notice & Action Initiate' 31 Computer Law & Security Review 52, at 51 (2015).*

[205] *See* Terrorist Content Regulation, *supra* note 159, art. 13.

with judicial power at the EU level. It could be achieved by the cooperation between competent authorities, the Europol, and service providers in the EU, as stated in Article 14 of the Regulation.

4.2.2. Specific measures with the prohibition of Notice and Stay-down (NSD)

Notice and stay-down (NSD) require that the internet intermediary, after receiving the notification of illegal content on their platform, not only removes or disables access to the content but also takes additional measures to ensure that it is not subsequently reposted.[206] The NSD leads to excessive demands on intermediaries, with the potential to have consequent effects on innocent end-users as well. For example, In the Telekable case, the CJEU stated that respecting the fair balance between all relevant rights means a minimum discouraging infringement and avoiding unnecessary interference with the rights of both intermediaries and end-users.[207] Imposing general monitoring obligations on internet intermediaries upset the fair balance.[208]

In particular, the active identification of new posts previously notified is unlawful because it requires general monitoring of all users that generate content. Screening out illegal content cannot be achieved without filtering all content. Regardless of whether this process occurs through human supervision or automated filtering systems, the unavoidable result is that general monitoring will be applied, which is prohibited by Article 15 of the ECD.

The NSD requires implementing a complicated and costly system that would impose a significant burden on business models, particularly on small companies. Since false positives cannot be excluded, interferences with end-users' freedom of expression could happen. Moreover, awareness on the part of users that their comments are being monitored can result in chilling effects on speech, causing them to refrain from commenting even when their intended comments would not be illegal. Finally, the systematic analysis and process of information to identify users, whether they are implicated in the notified wrongdoing or not, also constitute a disproportionate interference with the user's right to personal data protection.

Having discussed above, if more protection against terrorist content should be applied, it is applicable to have the option of notice-and-suspension, as suggested by the CJEU Advocate General (AG) Maciej Szpuna in June 2019. [209] This mechanism means the banning of the primary perpetrator from the online platform to disable terrorism. In this way, "a hosting provider may be ordered to prevent any further infringement of the same type, and by the same recipient of an information society service."[210] If a specific infringement has already been identified, the obligation to identify the identical information from the same user does not constitute a general monitoring obligation.[211] Internet intermediaries could take robust measures and achieve potential effects similar to the NSD, but it also manages not to risk excessive damage to third-party rights. Comparing the traditional NTD mechanism, it not only guarantees the removal of terrorist content but also prevents the reappearance of the same terrorist content or illegal content generated by the same account. Comparing the NSD mechanism, it avoids the intrusive general monitoring measure and protects platform users' freedom of expression and

[206] See *Angelopoulos, supra* note 86, at 17.

[207] Case C-314/12 *UPC Telekabel Wien GmbH v Constantin Film Verleih GmbH*, ECLI:EU:C:2014:192, at 64.

[208] Case C-70/10, *Scarlet Extended SA v Société belge des auteurs, compositeurs et éditeurs SCRL (SABAM),* ECLI:EU:C:2011:771, at 53. *See* also Case C-360/10 *Belgische Vereniging van Auteurs, Componisten en Uitgevers CVBA (SABAM) v Netlog NV*, ECLI:EU:C:2012:85, at 51.

[209] Opinion of Advocate General Szpunar delivered on 4 June 2019, Case C-18/18, *Eva Glawischnig-Piesczek v Facebook Ireland Limited,* ECLI:EU:C:2019:458, available at https://eur-lex.europa.eu/legal-content/GA/TXT/?uri=CELEX:62018CC0018.

[210] Ibid, at 8.

[211] Ibid, at 54.

information. Besides, the notice-and-suspension mechanism is technically applicable and less costly. The application of content ID and hash sharing database between service providers has been proved effective for preventing terrorist content online. The function of such a system could be enhanced by broader cooperation with competent authorities and the Europol.

4.2.3. Adaption of new technologies with more robust safeguards

It is nearly impossible to develop counterterrorism strategies purely based on human skills and instinct in the digital context. Thus, investment in technology to deal with the emerging threats from terrorists is necessary. Governments can no longer only rely on traditional security mechanisms to counter terrorist content online. Countering terrorism and violent extremism will require incorporating and adapting technologies to build capabilities of detection, prevention, and elimination of terrorists.

Regarding the detection of terrorist content, trusted flaggers played by expertized entities are encouraged to develop fast and accurate content identification. Besides, service providers can also develop an accessible and user-friendly notification system for their users. In this way, they can reduce their detection and removal costs in the long term. With the development of artificial intelligence, automated detecting tools by online platforms could be encouraged, providing that necessary safeguards are in place. Stakeholders and authorities should set a series of safeguards to minimize risks: First, purely automated tools should be avoided. Necessary complementary action of humans should be applied to ensure the accuracy of content identification and minimize the interference of freedom of expression and information of platform users. Second, the transparency of the process is essential. Both competent authorities and hosting service providers should provide a clear and understandable explanation of why content has been removed after an automated detection. The content provider and the hosting service provider have the right to request a review by the competent authority, who is obliged to decide whether the removal order violates their human rights. Lastly, cooperation between online platforms is encouraged to share specific technologies, data, and expertise to develop automated tools.

Regarding the removal of terrorist content, online platforms should act expeditiously after the detection. A shorter timeline for the removal could be applied when the harm can be severe, or the illegality is notified by a competent authority or a trusted flagger. Due process should be followed to avoid over removal and ensure appropriate balance with human rights. Platforms should only remove the content at issue after an assessment in a diligent manner based on the information provided. They should also develop an accessible, transparent, and effective mechanism for content generators to contest the removal.

5. Conclusion

With the expansion of Web 2.0, terrorists also take advantage of the Internet and treat it as their "Official media," leading to a vast number of harmful content disseminated online. Internet intermediaries, functioning as go-betweens for transmitting these contents, have significant power to moderate them. Hence, in recent years, there has been a trend that public sectors are calling for cooperation with private companies to counter terrorist content online.

The answer to the first key research question of the thesis, i.e., What are the challenges for counterterrorism in the digital context? is clear: the internet enhanced information sharing and communication. Terrorists are also sophisticated users of the Internet and generate a vast number of harmful content online. There is a trend that Internet intermediaries gradually have significant power to moderate these contents because of their mastery of digital technologies, while public sectors are diminishing the power for content regulation online. Hence, there is a need to discuss the role that Internet intermediaries shall play in the EU to regulate terrorist content online in the digital context.

The ECD offers the general legal framework for illegal content removal at the EU level and introduces

the NTD mechanism as an immunity approach for internet intermediaries. However, the ECD does not harmonize the conditions for holding intermediaries liable but only for exempting Internet intermediaries from liability. Besides, the absence of concrete guidelines for the NTD process leads to different jurisdictions in the Member States of the EU. With the staggering rate of terrorist content generated online, there is a need to transform the horizontal NTD mechanism into a more flexible NA mechanism for terrorist content regulation in the EU. Therefore, the second to fourth key research questions have been answered: the liability of "Notice and Take-down" for Internet intermediaries in the ECD is not enough for counterterrorism in the EU in the digital era.

After researching the legal instruments for online terrorist content moderation in the EU, it is justified to say that there is a trend that internet intermediary liability in the EU is shifting from liability (a negligence-based approach) to responsibility (emphasizing the need for proactive measures). The new enforced Regulation on Preventing the Dissemination of Terrorist Content Online has introduced new measures for internet intermediaries to prevent terrorist content online. However, this Regulation still has fundamental rights issues, considering the lack of judicial independence of competent authorities, the short timeline removal orders, and the absence of coherent guidelines for specific measures. Without detailed guidelines and strong safeguards, the application of the current NA mechanism could lead to infringement of fundamental rights of human beings, mainly freedom of expression, freedom of information of platform users, and the freedom of business of service providers. Hence, the Member States and Internet intermediaries need to constitute a fair balance of human rights when applying new approaches.

Several measures should be considered to constitute a fair balance between the application of the NA mechanism and the protection of human rights. First, Internet intermediaries are encouraged to cooperate with judicial-independent competent authorities in the EU Member States. After receiving removal orders from competent authorities, they should swiftly remove or disable access to terrorist content on their platform. Second, Internet intermediaries can apply specific measures to detect and remove terrorist contents, including the notice and suspension mechanism, the application of content ID, and the hash sharing system. However, general monitoring in the NSD mechanism should be prohibited to avoid over-removal and excessive interference with human rights. Third, Internet intermediaries are encouraged to develop new technologies for terrorist content regulation. However, sufficient safeguards should be guaranteed to ensure the system's accuracy, transparency, and accountability.

Based on the analysis above, the answer to the research question of the thesis "To What Extent Shall EU Internet Intermediaries Apply Proactive Measures for Counterterrorism without Affecting Human Rights Protection?" is clear. Following the trend to a vertical, flexible NA mechanism, Internet intermediaries are encouraged to develop new technologies to actively detect, identify and remove terrorist content on their platform. However, general monitoring should be prohibited. Automatic measures could be applied with necessary human intervention and robust safeguards. Besides, cooperation between Internet intermediaries and public sectors shall be developed for a strong and effective NA mechanism, with full consideration of human rights.

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Cong in Leiden

KU LEUVEN CENTRE FOR IT & IP LAW (CITIP) - IMEC
SINT-MICHIELSSTRAAT 6 BOX 3443
3000 LEUVEN, BELGIUM

To whom it concerns

OUR REFERENCE
YOUR REFERENCE
LEUVEN

Re : Recommendation of applicant Yao Cong

13/01/2022

Dear Madam, dear Sir,

I understand from the applicant that he applied to your programme or institution, and hereby like to recommend Mr. Yao Cong as a motivated and driven person, eager to further develop his knowledge.

I got to learn Yao Cong when I was his thesis supervisor at Leiden University, the Netherlands in 2021. He chose to write about the topic of Internet intermediaries' liability for counterterrorism. In his thesis, *Internet Intermediaries' Liability for Counterterrorism in the EU: A Trend from Liability to Responsibility and the Protection of Human Rights*, Cong discussed the EU approach of intermediary liability to regulate terrorist content online.

Although the topic was very challenging, Yao Cong explained his plans and proposal in detail and confidently expressed his personal opinion on the research questions. He was always very pro-active and Cong's logical thinking and confidence left a very good impression on me during the whole process.

Cong and I were able to communicate effectively while he was always eager to take suggestions into account and presented always improved texts. Yao Cong had a clear and profound understanding of his research, and was able to complete his thesis effectively, in time and with good results.

From his thesis, I could tell that Yao Cong possesses excellent legal analysis and evaluation capability, logical and critical thinking for legal research, and true diligence and confidence to be an academic researcher. I firmly believe that you will find him a passionate, confident, and hardworking student, a good team player and that his future path and career will truly benefit from your high-quality education. I would therefore happily recommend him.

I remain at your disposal in case you would have any request for further information.

Yours sincerely,

Els KINDT

ELS KINDT, POST-DOC RESEARCHER
KU LEUVEN CENTRE FOR IT & IP LAW (CITIP) - IMEC
TEL. + 32 16 32 54 21
els.kindt@kuleuven.be
www.law.kuleuven.be/citip
www.imec.be